

<i>Latin</i>		<i>English</i>
Theologia Polemica		Polemical Theology
Controversia XXVIII: De Electione Summi Pontificis		Controversy XXVIII: On the Election of the Supreme Pontiff
Non est quæstio de S. Petro primo Pontifice; satis enim ex dictis constat, quod Christus eum elegerit, & inauguraverit: nec etiam de electione Ministrorum Ecclesiæ, de qua Bellarminus lib. 1. de Cler. sed solùm de Successoribus D. Petri in sum. Pontificatu.		There is no question here of St. Peter, the first Pontiff; for it is sufficiently evident from what has been said that Christ chose and installed him: nor of the election of the Ministers of the Church, of which Bellarmine treats in Book 1 On Clerics; but only of the Successors of St. Peter in the supreme Pontificate.
Pars Prior: Doctrinæ Catholicorum		First Part: The Doctrines of the Catholics
I. <i>Doctrina Prima.</i> Circa Electores Papæ, & eligendi formam nihil jure divino fuit determinatum, sed ipsimet Pontifici à Christo fuit relictum, ut de modo electionis disponeret. Ita communissima Theologorum sententia. Atque hinc factum, ut ait Arriaga Tom. 5. Disp. 7. n. 46. cur ipsi Pontifices sæpiùs mutaverint modum, & restrinxerint ad pauciores personas. Nam ab initio designatus fuit totus Clerus Romanus unà cum vicinis Episcopis. Postea verò ob nimiam multitudinem contractus fuit numerus Electorum ad paucos è Clero Romano, & aliquot Episcopos cap. 3. de elect. in 6. decretal. & Clement. 2. de Elect. quos Sylvester I. in Concilio Romano appellavit Cardinales, quasi primarios & principales viros cum ante dicerentur Regionarii, tanquam Præfecti 14. regionibus urbis Romanæ, quibus postea Innocentius III. an. Christi 1244. rubrum galerum imposuit, ut hoc symbolo monerentur, etiam sanguinem pro libertate Ecclesiæ profundere, cujus tunc periculum a Friderico II. Imperatore & capitali Pontificis hoste. Demum Alexander III. cap. 6. de elect. Cardinalibus hanc eligendi formam præscripsit, ut non sufficeret quælibet pluralitas suffragiorum, nisi duæ tertiæ conspirant, v. g. sexaginta ex nonaginta.		I. <i>First Doctrine.</i> Concerning the Electors of the Pope and the form of electing, nothing was determined by divine law, but it was left by Christ to the Pontiff himself to dispose concerning the mode of election. So the most common opinion of the Theologians. And hence it has come about, as Arriaga says (Tom. 5, Disp. 7, n. 46), that the Pontiffs themselves have rather often changed the mode and restricted it to fewer persons. For at the beginning the whole Roman Clergy together with the neighboring Bishops was designated. But afterwards, on account of the excessive multitude, the number of the Electors was contracted to a few from the Roman Clergy and several Bishops (cap. 3, de elect. in 6. decretal.; & Clement. 2, de Elect.), whom Sylvester I in a Roman Council called Cardinals, as being the primary and principal men, whereas before they were called Regionarii, as Prefects over the 14 regions of the city of Rome; upon whom afterwards Innocent III, in the year of Christ 1244, imposed the red hat, that by this symbol they might be admonished to shed even their blood for the liberty of the Church, whose danger then stood from the Emperor Frederick II, a capital enemy of the Pontiff. Finally Alexander III (cap. 6, de elect.) prescribed to the Cardinals this form of electing: that not just any plurality of votes should suffice, unless two thirds conspire — e.g., sixty out of ninety.

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II. Porro adhuc plures Electores possunt adjungi vel substitui, sicuti in Concilio Constantien. Sess. 41. ad eligendum Pontificem præter Cardinales designati fuerunt multi alii Prælati. Nonnunquam etiam Imperatoribus concessa fuit Electio summi Pontificis vel permissivâ dissimulatione Ecclesiæ, quod nimirum potentia Imperatorum id sibi arrogantium retundi non posset, ut Justiniani senioris & Successorum ejus usque ad Constantinum IV. vel ultroneâ delatione ad necessariam Ecclesiæ defensionem, sicut Adrianus I. concessit Carolo M. & Leo VIII. Othoni c. 22. & 23. Dist. 63. si tamen sint authentici Canones, quos Baronius Tom. 9. An. 794. pro spuris habet ex Sigeberto schismatico imprudenter à Gratiano conscriptis. Quidquid sit, huic juri renunciavit Ludovicus Caroli Filius, & Otho cap. 30. & 33. dist. cit. videri potest Spondanus ad A. C. 817.		II. Moreover, still further Electors can be added or substituted, as in the Council of Constance, Session 41, many other Prelates besides the Cardinals were designated for electing the Pontiff. Sometimes the Election of the supreme Pontiff was even conceded to Emperors — whether by the permissive dissimulation of the Church, since, namely, the power of the Emperors arrogating this to themselves could not be beaten back, as with Justinian the elder and his Successors down to Constantine IV; or by voluntary concession for the necessary defense of the Church, as Adrian I granted it to Charlemagne, and Leo VIII to Otto (c. 22 & 23, Dist. 63) — if indeed those Canons are authentic, which Baronius (Tom. 9, An. 794) holds for spurious, imprudently compiled by Gratian from the schismatic Sigebert. However that may be, Louis the son of Charles renounced this right, and Otto likewise (cap. 30 & 33, dist. cit.); Spondanus may be consulted at A.D. 817.
III. Sed quid si Pontifex abrogaret jam modum electionis hodiernæ, & antequam novum præscriberet, moreretur? In hoc casu Card. Bellar. Lib. 1. de Cler. cap. 1. putat, electionem rursus devolutum iri ad primos Electores, id est, Clerum Romanum, & vicinum. Verum probabilius est, quod censent Suarez, Vasquez, Arriaga loc. cit. n. 48. & multi alii Theologi ad generale Concilium translatum iri, idque jure Naturæ, cujus lumen ostendit, summam electionem ad summam potestatem pertinere, nisi aliter fuerit constitutum. Atqui in proposito casu defuncto Pontifice & Cardinalibus mortuis aut officio suo fungi nolentibus non est major potestas in Ecclesia, quàm Concilii Generalis. Confirmatur. Tum quia Concilium Generale immediatè repræsentat Ecclesiam, & Papa non Romani tantum Cleri, sed totius Ecclesiæ est Episcopus, & quâ talis supremam habet jurisdictionem. Tum quia competit cuilibet communitati in casu necessitatis sibi de Capite providere. Nec refert, quod ante Cardinalium assignationem jus eligendi		III. But what if a Pontiff were to abrogate the present-day mode of election, and die before he prescribed a new one? In this case Cardinal Bellarmine (Book 1, On Clerics, ch. 1) thinks the election would devolve again upon the first Electors, that is, the Roman and neighboring Clergy. But it is more probable, as Suárez, Vázquez, Arriaga (loc. cit., n. 48), and many other Theologians judge, that it would be transferred to a general Council, and that by the law of Nature, whose light shows that the supreme election pertains to the supreme power, unless it has been constituted otherwise. Now in the proposed case, the Pontiff being deceased and the Cardinals dead or unwilling to discharge their office, there is no greater power in the Church than that of a General Council. It is confirmed: both because a General Council immediately represents the Church, and the Pope is the Bishop not of the Roman Clergy only, but of the whole Church, and as such has supreme jurisdiction; and because it belongs to any community in a case of necessity to provide itself with a Head. Nor does it matter that before the appointment of the Cardinals the right of electing the Pontiff was with the Roman Clergy, as said above; since that

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Pontificis penès Clerum Romanum fuerit, ut supra dictum; cum illa ordinatio tantùm fuerit lex humana abolita & nunquam reviviscens.		ordinance was only a human law, abolished and never reviving.
IV. <i>Doctrina Secunda.</i> Pontifex legitimè electus suam potestatem non accipit ab hominibus, sed immediatè ab ipso Christo, cui persona electa præsenteratur. Ita ex communi Doctorum Cajetanus Tom. 1. Opuscul. Tract. 1. Ratio clara est, quia nemo potest dare alteri, quod ipse non habet vel formaliter, vel eminenter. Sed Electores Papæ nec formaliter nec eminenter habent potestatem Pontificiam. Ergo non possunt alteri conferre. Est igitur Electio ista tantùm conditio, sine quâ Deus potestatem Pontificis in hominem non transferret, non autem ratio, seu medium, quo Electores ipsi illam potestatem electo tribuant, perindè ut Clericus à Patronis Episcopo præsenteratus non accipit jus Spirituale à Patronis, sed ab Episcopo.		IV. <i>Second Doctrine.</i> The legitimately elected Pontiff does not receive his power from men, but immediately from Christ himself, to whom the elected person is presented. So, from the common view of the Doctors, Cajetan (Tom. 1, Opuscul., Tract. 1). The reason is clear: because no one can give to another what he himself has neither formally nor eminently. But the Electors of the Pope have the Pontifical power neither formally nor eminently. Therefore they cannot confer it on another. This Election, then, is only a condition without which God would not transfer the power of the Pontiff to a man — not, however, the cause or means by which the Electors themselves bestow that power upon the elect; just as a Cleric presented to the Bishop by Patrons does not receive his Spiritual right from the Patrons, but from the Bishop.
V. Gravior olim fuit quæstio, num de fide sit, summum Pontificem pro tempore existentem esse verum Pontificem? pro utraque parte steterunt magnæ autoritatis Theologi, ut videre est apud Dianam part. 11. Tract. 2. de infallibilitate decret. Pontif. Resolut. 6. Ubi pro parte negativa imprimis affert M. Bannez in 2.2. D. Thom. q. 1. art. 10. dub. 2. ad 2. Cajetanum in cit. q. 1. art. 3. ad 4. & Castrum adversus hæreses Lib. 1. c. 9. Idem tenent Canus Lib. 6. de locis cap. 8. q. 1. ad 10. Malderus Disp. 5. de sum. Pontif. in solut. ad 4. & alii non pauci, quibus addi Card. Bellarminus potest de Concil. lib. 2. cap. 9. ubi ad objectionem postremam ait, naturali solùm evidentiâ & fide humanâ haberi, Concilia Nicænum & Ephesinum fuisse legitimè congregata, atque hoc sufficere, ut definita ab illis habeantur de fide. Nam constat, eandem esse quæstionem (quod ad præsens institutum spectat) an sit de fide, hoc Concilium esse aut fuisse legitimum: & an sit de fide, hunc numero Pontificem esse		V. Formerly the question was rather grave, whether it is of faith that the supreme Pontiff existing for the time being is the true Pontiff. Theologians of great authority stood on both sides, as may be seen in Diana, part 11, Tract 2, on the infallibility of pontifical decrees, Resolution 6, where for the negative side he adduces first of all Master Báñez on the 2-2 of St. Thomas, q. 1, art. 10, dub. 2, ad 2; Cajetan on the cited q. 1, art. 3, ad 4; and Castro, Against the Heresies, Book 1, ch. 9. The same is held by Cano, Book 6 of On the Theological Places, ch. 8, q. 1, ad 10; Malderus, Disp. 5 on the Supreme Pontiff, in the solution to the 4th; and not a few others, to whom Cardinal Bellarmine may be added, On Councils, Book 2, ch. 9, where, replying to the last objection, he says that it is held only by natural evidence and human faith that the Councils of Nicaea and Ephesus were legitimately convened, and that this suffices for the things defined by them to be held as of faith. For it is evident that it is the same question (so far as concerns our present purpose) whether it is of faith that this Council is or was legitimate, and whether it is of faith that this individual Pontiff is the true

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verum Papam. In affirmativam sententiam hodie omnium ferè Academicarum Doctores conspirant, cum quibus sit.		Pope. In the affirmative opinion today the Doctors of almost all the Academies conspire, and with them let our position stand.
VI. <i>Doctrina tertia.</i> De fide est, hunc numero Pontificem pro tempore existentem, nimirum nunc Innocentium XI. quem tota Ecclesia tanquam legitime electum agnoscit & recipit, esse verum Pontificem, & totius Ecclesiæ Caput. Ita nominatim è Societate nostra P. Alphonsus Salmeron, Valentia, Suarez, Hurtado de Mendoza, Tanner, Amicus, Oviedo, Arriaga, Castro-Palao, Tr. 4. D. 1. num. 5. §. 2. Mart. Esparza de Fide Quæst. 29. Card. Lugo Disp. 1. de Fide Sect. 13. Card. Pallavicin. ibid. num. 140. & ne longior in recensendo sim, cæteri nostri Patres hodie omnes. Atque huic doctrinæ magnum robur dedit Clemens VIII. qui, teste Diana, in carceres coniecit nonnullos Doctores oppositum asserentes, eosque Romam venire jussit, ut opinionis suæ rationem redderent. Probatur 1. De fide est, omnem canonicè electum, qui intrat Cathedram Apostolicam, esse verum Pontificem ac Pastorem universæ Ecclesiæ. Sed hic numero Pontifex Innocentius XI. qui communi Ecclesiæ consensu est acceptatus, ut Caput Ecclesiæ est canonicè electus. Ergo &c. Major est certa perinde ac ista: de fide est, illum esse sanctum, qui legitime est canonizatus. Prob. Min. Quidquid tota Ecclesia firmiter credit in rebus ad Religionem pertinentibus est verum, cum ipsa sit <i>columna ac firmamentum veritatis</i> 1. Tim. 3. v. 15. & errare non possit agnoscendo aliquem pro vero Pontifice, qui talis non est, uti revera non est, qui canonicè electus non fuit. Atqui post factam Papæ inaugurationem & promulgationem, ejusque universalem acceptationem atque approbationem Ecclesia firmiter credit, illum fuisse legitime electum. Ergo est verum &c.		VI. <i>Third Doctrine.</i> It is of faith that this individual Pontiff existing for the time being — namely, now Innocent XI, whom the whole Church acknowledges and receives as legitimately elected — is the true Pontiff and the Head of the whole Church. So by name, from our Society, Fr. Alphonsus Salmerón, Valencia, Suárez, Hurtado de Mendoza, Tanner, Amicus, Oviedo, Arriaga, Castro Palao (Tract 4, Disp. 1, num. 5, § 2), Martín de Esparza (On Faith, Quest. 29), Cardinal de Lugo (Disp. 1 on Faith, Sect. 13), Cardinal Pallavicino (ibid., num. 140), and — lest I be too long in recounting — all the rest of our Fathers today. And Clement VIII gave great strength to this doctrine, who, as Diana testifies, threw into prison several Doctors asserting the opposite, and ordered them to come to Rome to render an account of their opinion. It is proved, first: It is of faith that everyone canonically elected who enters upon the Apostolic Chair is the true Pontiff and Pastor of the universal Church. But this individual Pontiff, Innocent XI, who has been accepted by the common consent of the Church, has been canonically elected as Head of the Church. Therefore, etc. The Major is certain in the same way as this: it is of faith that he is a saint who has been legitimately canonized. Proof of the Minor: Whatever the whole Church firmly believes in matters pertaining to Religion is true, since she is the <i>pillar and ground of truth</i> (1 Tim. 3:15) and cannot err by acknowledging as true Pontiff one who is not such — as he really is not who was not canonically elected. But after the inauguration and promulgation of a Pope, and his universal acceptance and approbation, the Church firmly believes that he was legitimately elected. Therefore it is true, etc.
VII. Probatur 2. Martinus V. Papa in Concilio Constantiensi statuit, ut hæreticis qui Ecclesiæ reconciliari		VII. It is proved, secondly: Pope Martin V decreed in the Council of Constance that to heretics wishing to be reconciled to the Church

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vellent, primò proponeretur, <i>Ut credant, Papam canonicè electum, qui pro tempore fuerit (expresso ejus nomine) esse Successorem Petri, & habere supremam in Ecclesia potestatem.</i> Ergo Pontifex supponebat, hoc esse de fide, cum ab hæretico non exigatur nisi assensus rerum ad fidem pertinentium, & quidem absolutus, non virtualiter conditionatus, nempe si iste Pontifex sit canonicè electus; talis enim consensus foret frustraneus.		it should first be proposed <i>that they believe that the canonically elected Pope who for the time being shall be (his name being expressly stated) is the Successor of Peter, and has supreme power in the Church.</i> Therefore the Pontiff supposed this to be of faith, since from a heretic nothing is exacted except assent to things pertaining to the faith — and that an absolute assent, not one virtually conditioned (namely, “if this Pontiff has been canonically elected”); for such an assent would be futile.
VIII. Probatur 3. Quia debemus fide credere omnia definita in Concilio Tridentino v. g. & aliis Conciliis Generalibus legitimis. Ergo debemus fide credere, illud esse legitimum Concilium; sicuti quia credere debemus fide omnia contenta in Evangelio S. Marci, debemus etiam fide credere, illud esse verum & canonicum Evangelium; si enim prudenter possemus dubitare, aut formidare de legitimitate Concilii, possemus etiam dubitare vel formidare de ejusdem definitionibus. Cum ergo valor Concilii dependeat ex consensu & approbatione veri Papæ, sine qua approbatione Concilium non habet auctoritatem legitimi Concilii, consequens est, ut eadem fide credi debeat verus Pontifex, à quo Concilium legitimum habeat auctoritatem & valorem.		VIII. It is proved, thirdly: Because we must believe by faith all the things defined in the Council of Trent, for example, and in the other legitimate General Councils. Therefore we must believe by faith that it is a legitimate Council; just as, because we must believe by faith all the things contained in the Gospel of St. Mark, we must also believe by faith that it is a true and canonical Gospel; for if we could prudently doubt or fear concerning the legitimacy of a Council, we could also doubt or fear concerning its definitions. Since therefore the validity of a Council depends on the consent and approbation of a true Pope, without which approbation a Council does not have the authority of a legitimate Council, it follows that by the same faith the true Pontiff must be believed, from whom the legitimate Council has its authority and validity.
IX. Dicunt Adversarii. Tridentinum futurum fuisse infallibile, etiamsi non habuisset verum Pontificem, sed solùm existimatum talem ab Ecclesia. Transeat hoc; non tamen futurum fuisset à parte rei legitimum; siquidem hæc diversa sunt, & plus requiritur ad hoc, quàm ad illud. Dixi transeat. Nam Adversarii probare debent ex S. Scriptura, Pseudo-papæ promitti illam infallibilitatem. Si itaque afferant illa testimonia, quibus jubemur Ecclesiam audire, & quibus promittitur Ecclesiæ, quod nunquam sit erratura, utpotè columna & firmamentum veritatis: & indè colligere velint, ad divinam spectare Providentiam, ut Deus etiam Pseudo-		IX. The Adversaries say that Trent would have been infallible even if it had not had a true Pontiff, but only one esteemed such by the Church. Let this pass; yet it would not have been legitimate in point of fact, since these are different things, and more is required for the latter than for the former. I said “let it pass.” For the Adversaries must prove from Holy Scripture that this infallibility is promised to a Pseudo-pope. If, then, they should bring forward those testimonies by which we are commanded to hear the Church, and by which it is promised to the Church that she shall never err, as being the pillar and ground of truth, and should wish to infer from them that it pertains to divine Providence that God should so govern even a Pseudo-pope that he not lead the whole

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papam ita gubernet, ne inducat totam Ecclesiam in errorem. Nos meliore jure dicemus, & ex illis locis colligemus, ad providentiam Dei spectare, non permittere, ut Ecclesia tota erret circa Papam, recipiendo ut legitimum, qui ex impedimento occulto est incapax. Nam quando dicitur Matth. 16. v. 18. <i>super hanc Petram ædificabo Ecclesiam meam</i>, omnes Catholici fatentur, promissionem factam esse Petro & Successoribus ejus, id quod non absque violentia extenditur ab Adversariis ad pseudo-Successorem, tum quia putatitius Successor non est absolutè & simpliciter Successor. Tum quia hoc ipso, quod Christus promiserit, Ecclesiam suam fundandam esse supra Successores Petri, promisit etiam, se semper de Successoribus provisurum; quis autem dicat, Successorem putatitium esse opus divinæ providentiæ?		Church into error — we shall say with better right, and shall gather from those same passages, that it pertains to the providence of God not to permit that the whole Church err concerning the Pope by receiving as legitimate one who through a hidden impediment is incapable. For when it is said in Matthew 16:18, <i>upon this Rock I will build my Church</i>, all Catholics confess that the promise was made to Peter and his Successors — which is not without violence extended by the Adversaries to a pseudo-Successor: both because a putative Successor is not absolutely and simply a Successor; and because, by the very fact that Christ promised that His Church would be founded upon the Successors of Peter, He also promised that He would always provide Successors; but who would say that a putative Successor is a work of divine providence?
X. Probatum denique 4. Ecclesia maximè ut conjuncta suo Capiti non potest errare. Sed universa Ecclesia cum suo Capite tenet, Innocentium XI. esse verum Pontificem. Ergo fide divinâ tenendum est, aut dicendum, Ecclesiam cum suo Capite posse errare cognoscendo pro vero Papa, qui reverâ non est talis. Distinguit Bannez inter errorem practicum, & speculativum; illum vocat, quando secundum prudentiam erratur: hunc verò quando quis aliter de re judicat, quàm sit in se; quem posteriorem concedit contingere in proposito posse, sicut, inquit, Ecclesia diu speculative erravit, judicando Eunuchos matrimonio habiles, donec per Sixtum V. fuerit veritatem edocta. Sed facilè responsio hæc refellitur; quia Ecclesia universalis in his, quæ proponit circa inanimatam fidei regulam, quæ est Sacra Scriptura, non solùm practice, sed etiam speculative errare non potest. Ergo errare etiam nequit in accipienda regula fidei animata, quæ est summus Pontifex. Instantia de Eunuchis nihil probat; siquidem Ecclesia matrimonia Eunuchorum non judicavit vera, & ut talia approbavit, sed solùm toleravit ac		X. It is proved, finally, fourthly: The Church, above all as joined to her Head, cannot err. But the universal Church together with her Head holds that Innocent XI is the true Pontiff. Therefore it must be held by divine faith — or else it must be said that the Church together with her Head can err by recognizing as true Pope one who really is not such. Báñez distinguishes between practical and speculative error; he calls it the former when one errs while prudence is observed, the latter when someone judges about a thing otherwise than it is in itself; and this latter he concedes can happen in the present case — just as, he says, the Church long erred speculatively in judging Eunuchs capable of marriage, until through Sixtus V she was taught the truth. But this response is easily refuted; because the universal Church, in those things which she proposes concerning the inanimate rule of faith, which is Sacred Scripture, cannot err not only practically but also speculatively. Therefore she likewise cannot err in receiving the animate rule of faith, which is the supreme Pontiff. The instance about the Eunuchs proves nothing; for the Church did not judge the marriages of Eunuchs to be true and approve them as such, but only

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permisit, donec ad iudicium de illis ferendum se applicaret.		tolerated and permitted them, until she should apply herself to rendering judgment upon them.
XI. Confirmatur prior nostra Doctrina solutione eorum argumentorum, quæ ab Adversariis pro opposita sententia afferuntur. <i>Primum.</i> Non apparet, ex quo constare possit, hunc numero Pontificem v. g. Innocentium XI. esse verum ac legitimum Papam. Nam neque includitur in revelatione generali, neque speciatim ostendi potest, ubi & quando id revelatum fuerit. Respon. ex communi ferè Theologorum sententia, quod hic numero Pontifex sit legitimus Pontifex, revelatum fuisse tum in hac universali propositione: <i>Omnis legitime electus & promotus ad Cathedram Petri est legitimus Papa</i>: tum in illa, quod Ecclesia sit columna & firmamentum veritatis, atque errare in rebus ad Religionem pertinentibus non possit. Nam in hac generali regula, inquit Card. Lugo loc. cit. num. 330. continetur, eam errare non posse in cognoscendo hoc individuo pro vero Capite, & Regula visibili fidei Catholicæ, in quo gravius & periculosius erraret, quam circa aliquod objectum fidei particulare, quod non esset fundamentum aliorum, sicut Regula visibilis est fundamentum Fidei & Ecclesiæ, quæ ideò suprà Petrum & ejus Successorem fundata dicitur, ut proindè ex eo, quod Ecclesia hunc numero Pontificem agnoscat & acceptet tanquam Pontificem verum, certò ac sufficienter innotescat, eundem contineri in illa priori propositione, & esse legitime electum & promotum ad Cathedram Petri.		XI. Our foregoing Doctrine is confirmed by the solution of those arguments which are brought by the Adversaries for the opposite opinion. <i>The first.</i> It does not appear whence it could be established that this individual Pontiff, e.g., Innocent XI, is the true and legitimate Pope. For it is neither included in the general revelation, nor can it be specifically shown where and when this was revealed. Response: according to the almost common opinion of the Theologians, that this individual Pontiff is the legitimate Pontiff was revealed both in this universal proposition: <i>Everyone legitimately elected and promoted to the Chair of Peter is the legitimate Pope</i>; and in that other, that the Church is the pillar and ground of truth, and cannot err in matters pertaining to Religion. For in this general rule, says Cardinal de Lugo (loc. cit., num. 330), it is contained that she cannot err in recognizing this individual as the true Head and visible Rule of the Catholic faith — wherein she would err more gravely and more perilously than concerning some particular object of faith which was not the foundation of the others, as the visible Rule is the foundation of the Faith and of the Church, which for that reason is said to be founded upon Peter and his Successor — so that, accordingly, from the fact that the Church acknowledges and accepts this individual Pontiff as true Pontiff, it becomes certainly and sufficiently known that the same is contained in that former proposition, and has been legitimately elected and promoted to the Chair of Peter.
Arriaga Disp. 7. cit. num. 52. hoc universale responsum minimè quidem rejicit, insuper tamen putat, hunc numero Papam esse legitimum Papam, specialiter etiam ac de novo revelatum fuisse Ecclesiæ. Nam DEUS, inquit, dupliciter aliquid revelat, vel propriè, loquendo exterius vel interius cum eo, cui revelat, quâ ratione non est necessarium, dari modò in Ecclesia revelationem universalem ad		Arriaga (Disp. 7 cit., num. 52) by no means rejects this universal response, yet thinks moreover that this individual Pope's being the legitimate Pope has also been specially and newly revealed to the Church. For GOD, he says, reveals something in two ways: either properly, by speaking outwardly or inwardly with him to whom He reveals — in which manner it is not necessary that there be given now in the Church a universal revelation for believing; or in another way, in the exercised

<i>Latin</i>		<i>English</i>
credendum: vel alio modo in actu exercito non permittendo, ut ille, qui rem proponit, ullo modo aberret, sed ita intellectum ejus suâ providentiâ disponendo dirigat, ut veritatem tangat. Hoc igitur posteriore modo vult cit. Author, Deum revelare Ecclesiæ suæ, hunc numero Pontificem esse legitimum Pontificem; quippè non permittit, ut toti Ecclesiæ aliquis proponatur indubitanter, ut verus Papa, qui reverâ talis non est; id autem eum non permittere, habemus ex eo, quod promiserit, se Ecclesiæ adfuturum; quam promissionem in hoc maximè puncto præstare debet, à quo totius Ecclesiæ gubernatio & rerum credendarum declaratio dependet.		act, by not permitting that he who proposes a matter should in any way stray, but so directing his intellect, disposing it by His providence, that he touch the truth. In this latter way, then, the cited Author holds that God reveals to His Church that this individual Pontiff is the legitimate Pontiff; for He does not permit that anyone be proposed to the whole Church undoubtingly as true Pope who really is not such; and that He does not permit this, we have from the fact that He promised that He would be with His Church — a promise He must fulfill most of all in this point, on which the government of the whole Church and the declaration of the things to be believed depend.
XII. Porrò de eadem valida electione constat nobis indè, quod & Cardinales & Episcopi & Clerus & totum fermè Ecclesiæ Corpus illam electionem absque contradictione acceptet. Id autem, quod communiter dicitur, secluso ipso Papâ, <i>DEUM Ecclesiæ suæ nihil revelare</i>, distingui debet; quando Papa jam fuit receptus tanquam verus & legitimus Pontifex, & res ab eo est decidenda, fatemur, DEUM tunc erga illum solum exercere illam infallibilem suam assistentiam: at verò ut ipsemet Papa recipiatur, quâ talis, debet id per Ecclesiam præstare; quare dirigendo eandem, ne erret in tali electione, revelat nobis altero illo, quem diximus, modo, quis sit Papa & Caput Ecclesiæ. Unde ulterius patet, quando incipiat esse de fide, hunc numero Pontificem pro tempore electum esse verum ac legitimum Pontificem; nimirum quando tota aut ferè tota multitudo conspicitur uniformiter assentiri legitimitati electionis, aut tot jam & tales assensisse, ut prudenter dubitari non possit, quin reliqui in eandem sententiam ituri sint, inspectis circumstantiis, quæ in loco proximo innotescunt; nulla enim hujus articuli magis idonea propositio aut datur de facto, aut dari cogitarique faciliè potest, agendo conformiter ad conditionem humanam, atque humano modo, cui sese accommodat divina		XII. Moreover, the same valid election becomes evident to us from this, that the Cardinals and the Bishops and the Clergy and almost the whole Body of the Church accept that election without contradiction. And as for what is commonly said, that, setting aside the Pope himself, <i>GOD reveals nothing to His Church</i>, a distinction must be made: when the Pope has already been received as true and legitimate Pontiff, and a matter is to be decided by him, we grant that GOD then exercises that His infallible assistance toward him alone; but in order that the Pope himself be received as such, He must effect this through the Church; wherefore, directing her lest she err in such an election, He reveals to us, in that other way we have mentioned, who is Pope and Head of the Church. Whence it is further evident when it begins to be of faith that this individual Pontiff, elected for the time being, is the true and legitimate Pontiff: namely, when the whole or nearly the whole multitude is seen to assent uniformly to the legitimacy of the election, or so many and such have already assented that it cannot prudently be doubted that the rest will come to the same opinion, considering the circumstances which become known close at hand; for no more suitable proposing of this article either exists in fact, or can easily be conceived to exist, acting conformably to the human condition and in a human manner, to which divine providence accommodates itself, as Fr. Esparza well observes, quest. 29 cit.

<i>Latin</i>		<i>English</i>
providentia, ut benè P. Esparza quæst. 29. cit.		
XIII. <i>Alterum argumentum.</i> Credere, hunc esse verum Pontificem, supponit, eum ritè esse baptizatum; siquidem nullus, qui non est baptizatus, est capax Papatûs. Sed hoc circa prædictum Pontificem scire non possumus, cum nobis non constet, utrum baptizans intentionem habuerit baptizandi. Respon. eo ipso quod revelatum sit, hunc v. g. Innocentium XI. esse verum Pontificem, revelari etiam, eum esse baptizatum saltem implicitè. Nam si Baptismus includitur tanquam pars essentialis in veritate Papatûs, ut multi volunt, erit etiam de fide ipse Baptismus, quia immediatè erit revelatus, licet confusè tanquam pars in toto. Si verò, ut probabilius judicamus, baptismus non includitur formaliter in veritate Pontificatûs, sed prærequiritur essentialiter tanquam extrinsecum aliquod connotatum, ut DEUS conferat potestatem huic homini, tunc erit magis implicitè revelatus, quia sequitur ex duabus propositionibus de fide, nempè quod omnis Pontifex verus sit baptizatus: Et quod hic numero homo sit verus Pontifex. Cum ergo ex Theologia Scholastica constet, objectum conclusionis, quæ infertur ex duabus præmissis revelatis, posse etiam credi immediatè de fide absque discursu ex revelatis, adeòque ut explicatum, consequenter dicendum, baptismum hujus numero Pontificis ab Ecclesia acceptati esse de fide. Itaque concessâ Majore, distinguitur Minor. Non possumus certò scire ante acceptationem Ecclesiæ, concedimus: post istam acceptationem, negamus; undè tantùm sequitur, hunc numero Pontificem esse baptizatum, esse legitimum Pontificem &c. non esse nobis de fide credendum absolutè ante acceptationem Ecclesiæ: secus post istam acceptationem.		XIII. <i>A second argument.</i> To believe that this man is the true Pontiff supposes that he has been duly baptized, since no one who is not baptized is capable of the Papacy. But this we cannot know concerning the aforesaid Pontiff, since it is not established for us whether the one baptizing had the intention of baptizing. Response: by the very fact that it is revealed that this man, e.g., Innocent XI, is the true Pontiff, it is also revealed, at least implicitly, that he is baptized. For if Baptism is included as an essential part in the truth of the Papacy, as many hold, then Baptism itself will also be of faith, because it will be immediately revealed, although confusedly, as a part in the whole. But if, as we judge more probable, baptism is not included formally in the truth of the Pontificate, but is essentially prerequired as something extrinsic and connoted, in order that GOD confer the power upon this man, then it will be revealed more implicitly, because it follows from two propositions of faith, namely: that every true Pontiff is baptized; and that this individual man is the true Pontiff. Since therefore it is established from Scholastic Theology that the object of a conclusion which is inferred from two revealed premises can also be believed immediately of faith, without discourse, from the things revealed — it must accordingly, as explained, be said in consequence that the baptism of this individual Pontiff accepted by the Church is of faith. And so, the Major being conceded, the Minor is distinguished: that we cannot know with certainty before the acceptance of the Church, we concede; after that acceptance, we deny; whence it only follows that — this individual Pontiff's being baptized, being the legitimate Pontiff, etc. — is not to be believed by us of faith absolutely before the acceptance of the Church; it is otherwise after that acceptance.
XIV. Quod diximus de Baptismo, plerique Authores dictum volunt de Sacris Ordinibus. Verùm Arriaga de his		XIV. What we have said of Baptism, most Authors will have said also of Sacred Orders. But Arriaga affirms nothing about these. For, he

<i>Latin</i>		<i>English</i>
nihil affirmat. Nam, inquit, tota jurisdictio, in qua propriè consistit Papatus, est independens ab Ordine Sacro. Si ergo verus Papa potest esse sine ordinibus per medium annum, cur non per totum. Si inferas, Ergo si ordinet, & absolvat Sacramentaliter, poterit errare, id quod est in magnum præjudicium Ecclesiæ. Respondet cit. Author num. 51. quoad hoc forsan non majus fore præjudicium, quàm si alius Episcopus vel simplex Sacerdos absolvat & ordinet; quod non prorsus improbabile videri potest. Nihilominus prior opinio, ut communis retinenda est; cum utique pluris intersit Ecclesiæ, Papam in ordinando & absolvendo errare non posse, quàm privatum Episcopum vel Sacerdotem.		says, the whole jurisdiction in which the Papacy properly consists is independent of Sacred Order. If then a true Pope can exist without orders for half a year, why not for a whole one? If you infer: Then, if he ordains and absolves Sacramentally, he will be able to err, which is to the great prejudice of the Church — the cited Author replies (num. 51) that as to this the prejudice would perhaps be no greater than if another Bishop or a simple Priest were to absolve and ordain; which may seem not altogether improbable. Nevertheless the former opinion is to be retained as the common one; since it assuredly matters more to the Church that the Pope cannot err in ordaining and absolving than a private Bishop or Priest.
XV. <i>Tertium argumentum.</i> Qui recederet à moderno Pontifice summo, esset quidem schismaticus, non verò Hæreticus. Ergo non est de fide, quod ille sit legitimè electus Pontifex summus; siquidem recedere ab aliquo dogmate ad fidem spectante est hæresis, & non solùm schisma. Respon. cum hæresis & schisma differant ratione formali, minimè necessum est, ut omnis schismaticus sit Hæreticus; qui enim unitatem Ecclesiæ & Pontificis prælationem agnoscit, ex malitia tamen non vult illi subjici, & in hac subjectione cum reliquis Ecclesiæ membris communicare, purè schismaticus censetur; si quis tamen recederet cum errore intellectûs, quo non crederet eum, quem Ecclesia pro summo Pontifice recepit, & retinet, esse verum ac legitimè electum summum Pontificem, verè esset Hæreticus, posito, quod propositio, de qua agimus, ad fidem pertineat. Videri potest Castro-Palao Tr. 6. D. 4. p. 5.		XV. <i>A third argument.</i> He who would withdraw from the present supreme Pontiff would indeed be a schismatic, but not a Heretic. Therefore it is not of faith that he is the legitimately elected supreme Pontiff; since to withdraw from some dogma pertaining to the faith is heresy, and not schism only. Response: since heresy and schism differ in formal character, it is by no means necessary that every schismatic be a Heretic; for he who acknowledges the unity of the Church and the primacy of the Pontiff, yet out of malice refuses to be subject to him and, in this subjection, to communicate with the remaining members of the Church, is reckoned purely a schismatic; but if anyone were to withdraw with an error of the intellect, whereby he would not believe that he whom the Church has received and retains as supreme Pontiff is the true and legitimately elected supreme Pontiff, he would truly be a Heretic — supposing that the proposition of which we are treating pertains to the faith. Castro Palao may be consulted, Tract 6, Disp. 4, p. 5.
XVI. <i>Quartum & ultimum argumentum.</i> Per leges Ecclesiasticas irritatur electio facta cum impedimento occulto v. g. Simonia, insufficientis numeri suffragiorum &c. Ergo sic electus erit tantùm Pontifex apparens, etiamsi postmodum à tota Ecclesia acceptetur;		XVI. <i>The fourth and last argument.</i> By Ecclesiastical laws an election made with a hidden impediment — e.g., of Simony, of an insufficient number of votes, etc. — is voided. Therefore one so elected will be only an apparent Pontiff, even if afterwards he is accepted by the whole Church; because,

<i>Latin</i>		<i>English</i>
quia juxta regulam juris, quod ab initio vitiosum est, tractu temporis non convalescit. Si dicatur, ad divinam Providentiam pertinere non permittere, fieri electionem irritam cum tali impedimento, sequitur perperam & frustra fuisse introducta illa impedimenta ad irritandam electionem, etiam quando occulta sunt. Respon. prædictas Leges nec habere, nec posse habere locum, nec intelligi oportere nisi de prima electione, per quam à Cardinalibus factam non statim evadit fide certum, quod electus sit verus Pontifex. Si igitur ista electio ex occulto impedimento ponatur irrita, succedit alia nullo jure positivo irritabilis, quam facit Ecclesia, acceptando illum hominem pro vero Pontifice; & licet hæc acceptatio proveniat ex errore præcedente, non est tamen conditionata, sed absoluta; melius quippe est, Ecclesiam habere pro vero Pontifice aliquem, qui invalidè fuerit electus, quàm ignoranter carere vero Pontifice, & eum pro tali venerari, qui re ipsâ non sit; ideòque in prædicto casu penès universam Ecclesiam est potestas, providendi sibi de Capite legitimo, supplendo omnes juris defectus, ne maneat acephala; quam potestatem eligendi penès Ecclesiam evincunt argumenta, quæ pro præsentī doctrina nostra adduximus; censetur autem Ecclesia illum eligere quasi secundò, quem acceptat. Cætera argumenta, quæ contra eandem doctrinam nostram objiciunt hæretici, commodiùs in altera parte solvemus.		according to the rule of law, what is defective from the beginning does not become valid by the passage of time. And if it be said that it pertains to divine Providence not to permit that an election be made void by such an impediment, it follows that those impediments voiding an election, even when they are hidden, were introduced wrongly and in vain. Response: the aforesaid Laws neither have, nor can have, place, nor ought they to be understood, except of the first election, through which, made by the Cardinals, it does not at once become certain by faith that the one elected is the true Pontiff. If therefore that election be supposed void by reason of a hidden impediment, there succeeds another election, voidable by no positive law, which the Church makes by accepting that man as true Pontiff; and although this acceptance proceeds from the preceding error, it is nevertheless not conditioned, but absolute; for it is better that the Church should hold for true Pontiff someone who was invalidly elected, than that she should unknowingly lack a true Pontiff and venerate as such one who in reality is not. And therefore in the aforesaid case there resides in the universal Church the power of providing herself with a legitimate Head, supplying all defects of law, lest she remain headless; and that this power of electing resides in the Church is established by the arguments we have adduced for our present doctrine; and the Church is deemed to elect, as it were a second time, him whom she accepts. The other arguments which the heretics object against this same doctrine of ours we shall resolve more conveniently in the other part.
XVII. <i>Doctrina quarta.</i> Summus Pontifex potestatem suam iterum potest amittere. Ita omnes Doctores, qui triplici modo fieri id posse affirmant. Primò. Voluntariâ summi Pontificatûs renunciatione, uti definitum est à Cœlestino V. sicuti constat ex ejus decreto, quod fuit insertum juri communi c. 1. de Renunt. in 6. Ubi dicitur, posse Romanum Pontificem, maximè cum se insufficientem agnoscit ad gubernandam Ecclesiam & ad onera sustinenda, renunciare Papatui; quod		XVII. <i>Fourth Doctrine.</i> The supreme Pontiff can also lose his power again. So all the Doctors, who affirm this can happen in three ways. First, by voluntary renunciation of the supreme Pontificate, as was defined by Celestine V, as appears from his decree, which was inserted into the common law (c. 1, de Renunt. in 6). There it is said that the Roman Pontiff can — above all when he recognizes himself insufficient for governing the Church and for sustaining its burdens — renounce the Papacy; which decree that holy Pontiff sealed by his own example, for the perpetual memory

<i>Latin</i>		<i>English</i>
decretum sanctus Pontifex suo exemplo ad perpetuam rei memoriam obsignavit An. Christi 1294. Idem ante Cœlestinum fecisse Benedictum IX. scribit Spondanus ad An. Christi 1044. Utrum autem renunciatio ista, ut suum sortiatur effectum, acceptari debeat ab Ecclesia, non satis constat. Affirmat Arriaga D. 7. nu. 57. ratus, id omninò certum, quia tunc Papa non habet supra se Caput ullum. Negat probabiliùs Bellarminus Lib. 2. de Pontif. c. 29. quia Christus non confert independentem ab Ecclesia Pontificatum. Ergo nec aufert. Unde patet ad rationem in oppositum; etenim Ecclesia non exerceret tunc actum potestatis supra Papam, sed solùm daret consensum suum tanquam conditionem, sine qua Christus Pontificatum auferre nollet.		of the thing, in the year of Christ 1294. That Benedict IX did the same before Celestine, Spondanus writes at the year of Christ 1044. Whether, however, this renunciation, in order to take effect, must be accepted by the Church, is not sufficiently settled. Arriaga affirms (Disp. 7, num. 57), deeming the point altogether certain, since the Pope then has no Head above himself. Bellarmine more probably denies (Book 2, On the Pontiff, ch. 29), because Christ does not confer the Pontificate independently of the Church; therefore neither does He take it away. Whence the answer to the reason for the opposite side is clear: for the Church would not then be exercising an act of power over the Pope, but would only be giving her consent as a condition, without which Christ would not will to take away the Pontificate.
XVIII. <i>Secundò</i>. perpetuâ amentia, si in hanc Pontifex incideret. Ita communiter Doctores, asserentes illum tunc ipso jure divino eâ potestate Pontificiâ excidere. Nam fundamentum jurisdictionis est usus rationis, ita ut perpetua amentia quoad capacitatem jurisdictionis & dignitatis morti æquivalet.		XVIII. <i>Secondly</i>, by perpetual insanity, should a Pontiff fall into it. So the Doctors commonly, asserting that he then falls from the Pontifical power by divine law itself. For the foundation of jurisdiction is the use of reason, so that perpetual insanity, as regards the capacity for jurisdiction and dignity, is equivalent to death.
XIX. <i>Tertiò</i>. Hæresi, si Papa in hanc laberetur, & monitus non resipisceret. Ita omnes Doctores, inter quos tamen non convenit, an amissio ista Pontificiæ potestatis fiat ipso facto, jureque divino, saltem si hæresis sit notoria & palàm divulgata in Ecclesia: an verò solùm post sententiam declaratoriam criminis. Prius tenent multi ex antiquis Theologis & Canonistis, quos sequuntur Bellarminus Lib. 2. cit. c. 30. & Tanner Tom. 3. D. 1. §. 4. nu. 174. Moventur. Tum quia sententia etiam declaratoria criminis requirit jurisdictionem, quam non habet Ecclesia in Papam. Tum quia Papa omnibus Episcopis est Superior, quomodo ergo ab istis judicari potest? Tum quia Hæretici sunt vitandi ex præcepto Christi & Apostolorum. Ergo Papa obstinatè Hæreticus non debet manere Caput Ecclesiæ; siquidem hoc maximè debemus non vitare, imò ad		XIX. <i>Thirdly</i>, by Heresy, if a Pope should lapse into it and, being admonished, should not repent. So all the Doctors; among whom, however, it is not agreed whether that loss of the Pontifical power happens by the very fact and by divine law, at least if the heresy be notorious and openly divulged in the Church, or rather only after a declaratory sentence of the crime. The former is held by many of the older Theologians and Canonists, whom Bellarmine (Book 2 cit., ch. 30) and Tanner (Tom. 3, D. 1, § 4, num. 174) follow. They are moved: both because even a declaratory sentence of the crime requires jurisdiction, which the Church does not have over a Pope; and because the Pope is Superior to all the Bishops — how then can he be judged by them?; and because Heretics are to be shunned by the precept of Christ and the Apostles: therefore an obstinately Heretical Pope ought not to remain the Head of the Church, since him above all we ought not to shun — nay, we must have

<i>Latin</i>		<i>English</i>
illud in præcipuis causis recurrere. Posterius probabilius asserunt Recentiores Theologi, quos refert & sequitur Arriaga Disp. 7. cit. nu. 58. Probatur. Tum autoritate Clementis I. qui in epist. 1. attestatur, D. Petrum docuisse, Papam Hæreticum esse deponendum. Tum quia amissio potestatis Pontificiæ est pœna longè gravissima. Ergo debemus habere jus divinum expressum, ut asseramus, illam ipso facto incurri; nullum autem tale jus ostendi potest. Quare vero-similius est, prædictam pœnam à Papa hæretico non incurri ante sententiam Ecclesiæ, hoc est, Episcoporum in unum Congregatorum; quod universale Concilium etiam nesciente, imò reluctante Pontifice in tali casu convocari potest, idque jure divino per traditionem cognito, ut habet communis sententia, & videtur rationi valde conforme, ut, quandoquidem post Papam ipsi sint Ecclesiæ Pastores, sint etiam in eadem causa Judices.		recourse to him in the principal causes. The latter is more probably asserted by the more Recent Theologians, whom Arriaga (Disp. 7 cit., num. 58) reports and follows. It is proved: both by the authority of Clement I, who in his first epistle attests that St. Peter taught that a Heretical Pope is to be deposed; and because the loss of the Pontifical power is by far the gravest of penalties; therefore we ought to have an express divine law in order to assert that it is incurred by the very fact; but no such law can be shown. Wherefore it is more likely that the aforesaid penalty is not incurred by a heretical Pope before the sentence of the Church, that is, of the Bishops gathered into one; and such a universal Council can in that case be convoked even without the knowledge — nay, against the resistance — of the Pontiff, and that by divine law known through tradition, as the common opinion holds; and it seems highly conformable to reason that, since after the Pope they are the Pastors of the Church, they should also be the Judges in this same cause.
XX. Respon. ad 1. rationem in oppositum. In casu hæreseos Ecclesiam habere jus supra Papam, adeòque posse eam procedere in ordine ad declarationem criminis; quantumvis ad hanc non sit necessaria jurisdictio in Reum; si enim gloriosum aliquod factum v. g. de Canonizando declarari juridicè potest absque jurisdictione in illius Authorem, cur non etiam facinus hæreseos de Papa Hæretico? Inferes. Ergo quando crimen adeò est clarum & publicum, ut nullâ planè majori indigeat probatione, eo ipso jam censetur depositus absque novo Concilio. Negamus illatum; esto enim ad publicationem & probationem delicti id non sit necessarium, quia tamen idipsum authenticè Ecclesiæ toti proponi debet, necessarium erit illud Concilium, ut juridicè res fiat, & ut declaretur, veniendum esse ad electionem. Quod si ante Concilium constet ejus emendatio, deponi non potest, nisi relapsus fuerit; tunc enim præsumitur, Hæreticus jure deponendus. Ad 2. Ecclesiam se tunc		XX. We reply to the first reason for the opposite view: in the case of heresy the Church has a right over the Pope, and so she can proceed in order to the declaration of the crime — even though for this no jurisdiction over the Accused is necessary; for if some glorious deed, e.g., of one to be Canonized, can be juridically declared without jurisdiction over its Author, why not also the crime of heresy concerning a Heretical Pope? You will infer: Then, when the crime is so clear and public that it plainly needs no further proof, by that very fact he is already reckoned deposed without a new Council. We deny the inference; for granted that for the publication and proof of the offense this is not necessary, yet because that same thing must be authentically proposed to the whole Church, that Council will be necessary, so that the matter be done juridically and it be declared that an election is to be proceeded to. But if before the Council his amendment is established, he cannot be deposed unless he has relapsed; for then it is presumed that the Heretic is by right to be deposed. To the second: the Church then stands only as the declarer of the crime; but it is Christ

<i>Latin</i>		<i>English</i>
non habere, nisi ut declaratricem criminis: Christum verò ei Pontifici immediatè auferre jurisdictionem; sicuti è contrario supra diximus in Electione, Ecclesiam se habere ut designatricem personæ: Christum autem ut datorem jurisdictionis. Ad 3. Hæreticum omninò esse vitandum, si ritè de ejus crimine constat; quod in præsentī casu asserimus non antè fieri, quàm Ecclesiæ judicium accedat. Et certè si Papa ob hæresin statim dignitate suâ excideret, gravia in Ecclesia sequerentur incommoda; quippè semper dubitare possemus, an non esset occultus Hæreticus; quod si hæresis externa sit, non tamen sufficienter probata, eadem se ingererent incommoda; quia perindè se haberet, ac si occulta foret. Quare cum supponamus, hæresin non esse destructivam dignitatis Pontificiæ, etiamsi illa externa sit, reipsâ hanc non tollit, sed solùm facit, ut Papa ob talem hæresin judicari possit.		who immediately takes the jurisdiction from that Pontiff — just as, conversely, we said above regarding the Election, that the Church stands as the designator of the person, but Christ as the giver of the jurisdiction. To the third: a Heretic is altogether to be shunned when his crime is duly established; which in the present case we assert does not happen before the judgment of the Church is added. And certainly, if a Pope fell from his dignity immediately upon heresy, grave inconveniences would follow in the Church; for we could always doubt whether he were not an occult Heretic; and if the heresy were external but not sufficiently proved, the same inconveniences would intrude, because it would stand just as if it were occult. Wherefore, since we suppose that heresy is not destructive of the Pontifical dignity, even if it be external it does not in fact take that dignity away, but only makes it possible for the Pope to be judged for such heresy.
XXI. Quod diximus de hæresi, tenendum suo modo etiam de schismate, quando ex pluribus simul electis discerni non potest, quisnam sit legitimè electus; tunc enim propter bonum publicum Ecclesiæ quilibet electus tenetur suo juri renuntiare: & si nolit, potest deponi, sicuti An. Christi 1177. in Concilio Venetiis sub Alexandro III. habito exauctoratus est Joannes quidam Abbas Sturmensis, quem Calistum III. dixerunt. Videri potest Spondanus prædicto anno, ubi n. 9. ait, eundem fuisse degradatum, & ab ipso Imperatore Friderico atque ab omnibus Principibus Ecclesiasticis & Sæcularibus dejectum ac reprobatum. De reliquo nulla in tali schismate incommoda sequuntur, etsi aliqui Papæ existimato adhæreant. Nam sublato schismate uniuntur legitimè electo Pontifici, atque ab hoc petunt confirmationem earum gratiarum, quas ab apparente Papa acceperunt, ac proindè eo ipso jam cessat periculum irreparabilis damni, & falsorum dogmatum. Hinc Pontifices, qui postea sine contradictione legitimi reperiuntur, solent vel invalidare, vel revalidare, quæ		XXI. What we have said of heresy is to be held in its own way also of schism, when from several elected at the same time it cannot be discerned which one has been legitimately elected; for then, for the public good of the Church, each of the elect is bound to renounce his right; and if he will not, he can be deposed — as in the year of Christ 1177, in the Council held at Venice under Alexander III, a certain John, Abbot of Struma, whom they called Callistus III, was stripped of office. Spondanus may be consulted at the aforesaid year, where at n. 9 he says the same man was degraded, and cast down and reprobated by the Emperor Frederick himself and by all the Ecclesiastical and Secular Princes. For the rest, no inconveniences follow in such a schism, even if some adhere to a supposed Pope. For when the schism has been removed they are united to the legitimately elected Pontiff, and from him they seek the confirmation of those graces which they received from the apparent Pope; and thus by that very fact the danger of irreparable harm and of false dogmas already ceases. Hence the Pontiffs who afterwards are found legitimate without contradiction are wont either to invalidate or to revalidate the things done under the schism, as they judge expedient for the

<i>Latin</i>		<i>English</i>
sub schismate acta fuêre, prout in Ecclesiæ bonum expedire judicant. Sic Martinus V. fecit, postquàm tandem legitimè, & sine controversia electus ac cognitus fuit Papa, delete prorsùs schismate.		good of the Church. So did Martin V, after at last he had been legitimately and without controversy elected and recognized as Pope, the schism being utterly destroyed.
XXII. <i>Doctrina quinta.</i> Extra casum hæresis seu apostasiæ nec ob ulla quantumvis gravia & notoria crimina, nec ob alia incommoda vel calamitates privari Papa suâ potestate unquam potest. Ita contra Glossam c. si Papa dist. 40. communiter Doctores. Ratio est, ut ne occasio accipiatur accusandi & expellendi Pontificem injustè è Sede sua: Item schismata faciendi &c. Hinc Axioma ex c. Nemo. qu. 3. <i>Prima Sedes à nemine judicatur.</i> Videri potest Bellarminus Lib. 2. cit. à c. 27. Item Lib. de Clericis c. 9. ubi quærit, an Papa designare sibi possit Successorem. De qua etiam quæstione agunt Suarez Tom. de fide Disput. 10. Sect. 4. Amicus ibid. D. 6. num. 205. Arriaga Tom. 5. Disp. 7. n. 47. & alii, qui consuli possunt; ad propositum nostrum quæstio ista nihil utilitatis habet.		XXII. <i>Fifth Doctrine.</i> Outside the case of heresy or apostasy, the Pope can never be deprived of his power — neither for any crimes however grave and notorious, nor for other inconveniences or calamities. So, against the Gloss on c. si Papa, dist. 40, the Doctors commonly. The reason is: lest occasion be taken for accusing and expelling a Pontiff unjustly from his See, likewise for making schisms, etc. Hence the Axiom from c. Nemo, qu. 3: <i>The First See is judged by no one.</i> Bellarmine may be consulted (Book 2 cit., from ch. 27); likewise the Book On Clerics, ch. 9, where he asks whether a Pope can designate his own Successor. This question is treated also by Suárez (Tom. on faith, Disput. 10, Sect. 4), Amicus (ibid., D. 6, num. 205), Arriaga (Tom. 5, Disp. 7, n. 47), and others, who may be consulted; for our purpose that question has no utility.
Pars Posterior: Errores Hæreticorum		Second Part: The Errors of the Heretics
XXIII. <i>Error primus.</i> Ex Romanis Pontificibus nullum fuisse legitimum Petri Successorem. Ita communiter omnes hæretici, quorum argumenta coacervatim proponunt Joan. Gerhardus Libri 2. parte 1. à fol. 468. Molinaeus Lib. 3. c. 3. à fol. 312. Amelius Tom. 1. a fol. 159. & alii Sectarii, quæ omnia ad ista quatergemina redigi possunt. <i>Primum</i> desumitur ex autoritate Historicorum Platinae, Martini Poloni, & Uspergensis, qui testantur Romano Pontifici Primatum non à Christo, sed ab Imperatoribus, & nominatim ab impio Phoca fuisse concessum.		XXIII. <i>The first Error:</i> That of the Roman Pontiffs none was a legitimate Successor of Peter. So commonly all the heretics, whose arguments are heaped together by John Gerhard (Book 2, part 1, from fol. 468), du Moulin (Book 3, ch. 3, from fol. 312), Amelius (Tom. 1, from fol. 159), and other Sectarians; all of which can be reduced to these four groups. <i>The first</i> is drawn from the authority of the Historians Platina, Martin of Poland, and the Uspergensis, who testify that the Primacy was granted to the Roman Pontiff not by Christ but by the Emperors, and namely by the impious Phocas.
XXIV. <i>Secundum</i> depromitur ex Conciliis & Patribus, qui Primatum Romani Episcopi non agnoverunt, imò nec sibi arrogare ausi fuerunt; quod, inquiunt Adversarii, apertè constat 1. ex Concilio Chalcedonensi, ubi Cyprianus & alii Episcopi congregati litteris ad		XXIV. <i>The second</i> is brought out from the Councils and Fathers, who did not acknowledge the Primacy of the Roman Bishop — nay, did not even dare to arrogate it to themselves; which, say the Adversaries, is openly evident: 1. from the Council of Chalcedon, where Cyprian and the other

<i>Latin</i>		<i>English</i>
Papam Scriptis eum non Patrem, aut Pastorem, sed Fratrem appellârunt, tanquam sibi parem. 2. in Concilio Carthaginensi VI. prohibitæ sunt appellationes ad Romanum Pontificem. Ergo non est agnitus pro supremo Iudice; nam, ut Calvinus Lib. 4. Instit. c. 7. §. 9. scribit, summum imperium apud eum esse constat, ad cuius tribunal provocatur. 3. Polycrates Episcopus Asianus & Irenæus Victori Papæ restiterunt, cum Episcopos Asiaticos excommunicaret. 4. S. Hieronymus epist. 85. ad Evagrium scribit: <i>Ubicunque fuerit Episcopus sive Romæ sive Constantinopoli, ejusdem meriti, ejusdem etiam est Sacerdotii.</i> Ergo omnes Episcopos pares agnovit, & nullum altero Superiorem. 5. Cyprianus Lib. 1. epist. 5. desperatos & perditos vocat, qui putant, minorem auctoritatem esse Episcoporum in Africa constitutorum, quàm Romani sint Episcopi. Idem asserit, neminem esse dicendum Episcopum Episcoporum, nullum Episcopum ab alio judicandum, sed à solo Christo. Ergo non existimavit Episcopos Romano Pontifici esse subjectos.		assembled Bishops, in letters written to the Pope, called him not Father or Pastor but Brother, as their equal. 2. In the Sixth Council of Carthage appeals to the Roman Pontiff were prohibited: therefore he was not acknowledged as supreme Judge; for, as Calvin writes (Book 4, Instit., ch. 7, § 9), it is evident that the supreme command rests with him to whose tribunal appeal is made. 3. Polycrates, an Asian Bishop, and Irenaeus resisted Pope Victor when he would excommunicate the Asiatic Bishops. 4. St. Jerome writes in epistle 85 to Evagrius: <i>Wherever a Bishop shall be, whether at Rome or at Constantinople, he is of the same worth, and also of the same Priesthood.</i> Therefore he acknowledged all Bishops as equals, and none Superior to another. 5. Cyprian (Book 1, epist. 5) calls desperate and lost those who think the authority of the Bishops constituted in Africa to be less than are the Bishops of Rome. The same asserts that no one is to be called Bishop of Bishops, that no Bishop is to be judged by another, but by Christ alone. Therefore he did not consider the Bishops to be subject to the Roman Pontiff.
XXV. <i>Tertium</i> arripitur ex vita & moribus Pontificum Romanorum, ex quibus, ut ajunt hæretici, multi fuerunt nomine Papæ indigni, utpote Magi, Sagi, hæretici, adulteri, homicidæ, simoniaci &c. à Sylvestro II. ad Gregorium VII. fuerunt quindecim Papæ palam pro Magis habiti, ut multi Historici testantur, quibus addi potest D. Antoninus p. 2. hist. tit. 16. cap. 1. §. 18. idipsum de Sylvestro scribens. Formosus I. fuit homo factiosus. Bonifacius VII. nefarius. Sergius III. nefandus. Joannes XI. Sergii ex Marozzia scorto Filius turpissimus. Joannes XII. impurissimus, qui etiam deprehensus in adulterio interiit. Et alii sceleratissimi, ut Genebrardus in chronolog. fol. 540. in hæc verba scribat: <i>per annos ferè 150. Pontifices circiter 50. a Joanne scil. VIII. qui Nicolao & Adriano sanctissimis licet Pontificibus successit, ad Leonem</i>		XXV. <i>The third</i> is seized from the life and morals of the Roman Pontiffs, of whom, as the heretics say, many were unworthy of the name of Pope, being Magicians, Sorcerers, heretics, adulterers, homicides, simoniacs, etc. From Sylvester II to Gregory VII there were fifteen Popes openly held for Magicians, as many Historians testify, to whom may be added St. Antoninus (p. 2, hist., tit. 16, cap. 1, § 18), writing the same of Sylvester. Formosus I was a factious man; Boniface VII nefarious; Sergius III unspeakable; John XI, the most base Son of Sergius by the harlot Marozia; John XII utterly impure, who also perished caught in adultery. And others most criminal, so that Genebrard in his chronology (fol. 540) writes in these words: <i>for about 150 years, about 50 Pontiffs — from John, namely, the VIIIth, who succeeded Nicholas and Adrian, albeit most holy Pontiffs, down to Leo IX (who, first called by GOD like another Aaron, recalled the ancient integrity of the Pontiffs to the Apostolic See) — fell away</i>

<i>Latin</i>		<i>English</i>
<i>IX. usque (qui primus a DEO vocatus velut alter Aaron antiquam Pontificum integritatem in Sedem Apostolicam revocavit) à virtute Majorum prorsus defecerunt, apotactici, Apostatici potius, quàm Apostolici. Testatur idem Author, aliquos Simoniacè in Sedem Papalem evasisse, alios in eandem intrusos fuisse. Quomodo ergo omnes Pontifices fuerunt legitimi Petri Successores?</i>		<i>utterly from the virtue of their Ancestors: apotactici, Apostatics rather than Apostolics.</i> The same Author testifies that some got into the Papal See by Simony, that others were intruded into it. How then were all the Pontiffs legitimate Successors of Peter?
<i>XXVI. Quartum & ultimum argumentum deducitur ex rationibus, quibus (ex opinione Sectariorum) vel falsis vel ridiculis Pontifices non potuerunt probare Primatum suum. v. g. in Concilio VI. Carthaginensi tres Pontifices Zozimus, Bonifacius, & Cœlestinus pro suo Pontificatu summo allegârunt quendam canonem Concilii Nicæni, quem Episcopi Africani in nullo libro reperire potuerunt, ut proindè fictus esse debeat. 2. in Concilio Florentino Eugenius IV. pro suo Papatu protulit postumas litteras Josephi Patriarchæ Constantinopolitani jam Florentiæ mortui, quas moribundus & tremulus scripserit. Quis autem credat, hominem morti vicinum & tremulum scribere potuisse? 3. Anacletus Papa c. 2. Dist. 22. ait, Petro concessum, ut Cephass, hoc est, Caput esset, & Primatum teneret Apostolatûs, insinuans, quod Glossa exprimit, nomen Cephas sumptum à Græco κεφαλή Caput, cum sit vox Syriaca non Caput sed petram significans, interprete Joanne Evangelistâ c. 1. v. 42. Innocentius III. c. 6. de Majoratu & obed. ineptissimè probat, Pontificem esse supra Imperatorem, eò quod fecerit DEUS duo luminaria Solem & Lunam, id est, Pontificem & Imperatorem, & illum esse majorem isto, sicut Sol major est Lunâ. Bonifacius VIII. Extrav. Unam Sanctam, eod. tit. probat, Pontificem habere duplicem jurisdictionem, temporalem & Spiritualem, quia Apostoli Luc. 22. v. 20. dixerunt Christo: <i>Ecce duo gladii hic.</i> Ibidem probat, Pontificem esse supremum & universalem Judicem; quia Paulus, 1. Cor. 2. v. 15. ait: <i>Spiritualis</i></i>		<i>XXVI. The fourth and last argument is deduced from the reasons — in the opinion of the Sectarians either false or ridiculous — by which the Pontiffs could not prove their Primacy. E.g.: in the Sixth Council of Carthage three Pontiffs, Zosimus, Boniface, and Celestine, alleged for their supreme Pontificate a certain canon of the Council of Nicaea which the African Bishops could find in no book, so that it must accordingly be a fabrication. 2. In the Council of Florence Eugene IV brought forward for his Papacy the posthumous letters of Joseph, Patriarch of Constantinople, already dead at Florence, which he is supposed to have written dying and trembling. But who would believe that a man near to death and trembling could write? 3. Pope Anacletus (c. 2, Dist. 22) says it was granted to Peter that he should be Cephas, that is, the Head, and should hold the Primacy of the Apostolate — insinuating, as the Gloss expresses it, that the name Cephas is taken from the Greek κεφαλή, Head; whereas it is a Syriac word signifying not Head but rock, on the interpretation of John the Evangelist, ch. 1, v. 42. Innocent III (c. 6, de Majoratu & obed.) most ineptly proves that the Pontiff is above the Emperor because GOD made two luminaries, the Sun and the Moon — that is, the Pontiff and the Emperor — and that the former is greater than the latter as the Sun is greater than the Moon. Boniface VIII, in the Extravagant Unam Sanctam (eod. tit.), proves that the Pontiff has a twofold jurisdiction, temporal and Spiritual, because the Apostles (Luke 22, v. 20) said to Christ: <i>Behold, here are two swords.</i> In the same place he proves that the Pontiff is the supreme and universal Judge, because Paul (1 Cor. 2, v. 15) says: <i>The Spiritual man judges all things, and he himself is judged by no one</i> — as if the Pontiff alone were Spiritual. In the same place he proves that</i>

<i>Latin</i>		<i>English</i>
<i>judicat omnia: & ipse a nemine judicatur; quasi Solus Pontifex sit Spiritualis. Ibidem probat, unum esse Caput totius Ecclesiæ, quia Genesis 1. v. 1. dicitur Deus omnia in principio creasse, non in principiis.</i>		there is one Head of the whole Church, because in Genesis 1, v. 1 God is said to have created all things <i>in the beginning</i>, not <i>in beginnings</i>.
XXVII. Errorem istum maximum unanimiter rejiciunt Sac. Concilia & Patres, qui de Successione Pontificum scripserunt. Ex Conciliis Florentinum Græcis & Latinis Patribus consentientibus ita statuit: <i>Definimus Sanctam Apostolicam Sedem, & ipsum Pontificem Romanum Successorem esse Beati Petri Principis Apostolorum, & verum Christi Vicarium, totiusque Ecclesiæ Caput, & omnium Christianorum Patrem ac Doctorem existere, & ipsi in B. Petro pascendi, regendi & gubernandi universalem Ecclesiam à Domino nostro Jesu Christo potestatem traditam esse.</i> Ex Patribus D. Augustinus in epist. 102. non minùs efficaciter, quàm breviter ait: <i>in Romana Ecclesia semper Apostolicæ Cathedræ viguit Principatus.</i> Unde etiam in Constitut. Novella 131. Justiniani <i>secundùm Sacrarum Synodorum decreta Primatum Sanctissimo veteris Romæ Episcopo tribuitur.</i> Argumenta Sectariorum omnia ruinosæ sunt & suis destituta fundamentis. Nec malè hæreticos in conatu tollendi Papatûs araneis similes dixeris; tum quod araneorum instar fatigent atque eviscerent se in opus nullius prorsus roboris & valoris. Tum quod ex flosculis pulchris non nisi venenum exsugant, ut in solutione omnium, quæ afferunt, apparebit. Itaque.		XXVII. This enormous Error is unanimously rejected by the Sacred Councils and the Fathers who have written on the Succession of the Pontiffs. Among the Councils, that of Florence, with the Greek and Latin Fathers consenting, determined thus: <i>We define that the Holy Apostolic See and the Roman Pontiff himself is the Successor of Blessed Peter, Prince of the Apostles, and the true Vicar of Christ, and that he stands as the Head of the whole Church and the Father and Teacher of all Christians, and that to him, in Blessed Peter, was handed over by our Lord Jesus Christ the power of feeding, ruling, and governing the universal Church.</i> Among the Fathers, St. Augustine in epistle 102 says no less efficaciously than briefly: <i>in the Roman Church the Principate of the Apostolic Chair has always been in vigor.</i> Whence also in the Constitution Novella 131 of Justinian, <i>according to the decrees of the Sacred Synods the Primacy is attributed to the Most Holy Bishop of elder Rome.</i> The arguments of the Sectarrians are all ruinous and destitute of their foundations. Nor would you speak amiss in calling the heretics, in their endeavor to abolish the Papacy, like spiders: both because, after the manner of spiders, they weary and eviscerate themselves for a work of no strength or worth at all; and because from fair flowers they suck out nothing but poison, as will appear in the solution of everything they bring forward. Therefore:
XXVIII. Respond. 1. <i>Ad argumentum primum ab autoritate desumptum.</i> Si propriè neque per Apostolicam quidem Autoritatem aut Conciliorum statuta Romanus Pontifex est totius Ecclesiæ Caput & Pastor seu Primas, multò minùs Autoritate Imperatoriæ talis esse potest, cum Imperatorum non sit, aliis conferre Ecclesiasticam & Spiritualem potestatem, cujus ipsi exsortes sunt.		XXVIII. We reply, first, <i>to the first argument, taken from authority.</i> If, properly speaking, the Roman Pontiff is not the Head and Pastor or Primate of the whole Church even by Apostolic Authority or by the statutes of Councils, much less can he be such by Imperial Authority, since it does not belong to Emperors to confer on others the Ecclesiastical and Spiritual power of which they themselves are destitute. Certainly, that the Pontiff has that supreme power of his

<i>Latin</i>		<i>English</i>
Certè Pontificem non habere suam illam supremam potestatem ab alio, quàm à quo D. Petrus ipsam habuit: neque D. Petrum aliundè habuisse, quàm à Christo, & vi institutionis hujus, luculenter demonstrari ex Sac. Scriptura, Patribus, & totius Antiquitatis historiâ satis & abunde constat ex iis, quæ supra diximus. Historia, quâ unicè argumentum nititur, ab hæreticis corrupta fuit. Nam Phocas Imperator Primatum Papæ non dedit, sed solùm defendit contra Cyrillum Patriarcham Constantinopolitanum, qui Bonifacio Pontifici Romano se æquare & titulum Universalis Episcopi usurpare moliebatur, videatur Cardinalis Baronius in Annal. Ecclesiast. ad An. Christi 606. Constat etiam apertè ex jure civili L. 8. C. de sum. Trin. & Fid. Cath. Ex Novella 131. Collat. 9. tit. 14. c. 2. vetustos Imperatores ante Phocam, ut Valentinianum, Gratianum, Theodosium jam agnovisse Primatum Pontificis. Habetur quoque in Tom. 2. Conciliorum Epistola præfixa Concilio Chalcedonensi ejusdem Valentiniani III. Imperatoris in Oriente (qui 170. annis Phocam præcessit) ad Theodosium II. Imperatorem Occidentis, in qua pro re præsentis sic præclare loquitur: <i>Fidem a nostris Majoribus traditam debemus cum omni competente devotione defendere, & dignitatem propriæ Venerationis B. Apostolo Petro intemeratam & in nostris temporibus conservare, quatenus Beatissimus Romanæ Civitatis Episcopus, cui Principatum Sacerdotii semper omnis Antiquitas contulit, locum habeat, ac facultatem, de fide & Sacerdotibus judicare.</i> In quibus duo singulariter notanda. Primum, quod <i>Romanæ Civitatis Episcopo Principatum Sacerdotii super omnes Antiquitas contulerit</i>, id est, tota retrò Antiquitas, non ipse, quem dixi, Valentinianus III. nec alii ante eum Christiani Cæsares. Alterum, quod <i>Dignitas B. Petri Apostoli vocetur dignitas propriæ venerationis</i>; quæ scil. B. Petro in suis Successoribus		from no other than from him from whom St. Peter had it, and that St. Peter had it from nowhere else than from Christ, and in virtue of this institution, is luminously demonstrated from Holy Scripture, the Fathers, and the history of all Antiquity, as is sufficiently and abundantly evident from what we said above. The History on which alone the argument leans was corrupted by the heretics. For the Emperor Phocas did not give the Primacy to the Pope, but only defended it against Cyril, Patriarch of Constantinople, who was scheming to equal himself to Boniface the Roman Pontiff and to usurp the title of Universal Bishop; see Cardinal Baronius in the Ecclesiastical Annals at the year of Christ 606. It is also openly evident from the civil law (L. 8, C. de sum. Trin. & Fid. Cath.; from Novella 131, Collat. 9, tit. 14, c. 2) that the ancient Emperors before Phocas — as Valentinian, Gratian, Theodosius — had already acknowledged the Primacy of the Pontiff. There is also extant, in Tome 2 of the Councils, the Epistle prefixed to the Council of Chalcedon of the same Valentinian III, Emperor in the East (who preceded Phocas by 170 years), to Theodosius II, Emperor of the West, in which for the present matter he speaks thus admirably: <i>We ought to defend with all fitting devotion the Faith handed down from our Ancestors, and to preserve inviolate in our own times too the dignity of proper Veneration for the Blessed Apostle Peter; so that the Most Blessed Bishop of the Roman City, upon whom all Antiquity has always conferred the Principate of the Priesthood, may have place and faculty to judge concerning the faith and Priests.</i> In which two things are singularly to be noted. First, that <i>Antiquity conferred on the Bishop of the Roman City the Principate of the Priesthood over all</i> — that is, all Antiquity back through time, not the Valentinian III I mentioned, nor other Christian Caesars before him. The other, that the Dignity of the Blessed Apostle Peter is called <i>the dignity of proper veneration</i> — which, namely, is attributed to Blessed Peter in his Successors and to no other. What more illustrious can be found for the legitimate Succession of St. Peter in the Principate of the Roman Pontiff — and that most ancient, before the times even of Valentinian himself, which are those times that

<i>Latin</i>		<i>English</i>
& nulli alteri tribuitur. Quid potest inveniri illustrius pro legitima Successione D. Petri in Principatu Romani Pontificis, eoque antiquissimo ante tempora ipsius etiam Valentiniani, quæ sunt tempora illa syncera etiam Sectariis nostris & casta integraque in Fide? Hinc igitur non solum refelluntur Magdeburgenses, qui Cent. 5. scripserunt Primatum Ecclesiæ fuisse Romano Episcopatu annexum auctoritate Phocæ, sed etiam Wicleff & Huss, qui apud Waldensem Lib. 2. doct. Fidei c. 7. id factum dixerunt decreto Constantini M. Item Lutherus & Calvinus, quorum ille Lib. de potest. Papæ id ipsum statuto Constantini IV: iste verò Lib. 4. Instit. c. 6. decreto Pipini & Caroli M. Imperatorum affinxit. Quia hi omnes sunt posteriores tempore, neque dare possunt spiritualem potestatem, quam ipsi non habent. Videri potest P. Adamus Tanner in Dioptra Fidei Lib. 3. c. 6. ubi hoc Adversariorum argumentum pluribus refutat.		even for our Sectarians are pure, and chaste and whole in Faith? Hence, then, are refuted not only the Magdeburgians, who in Century 5 wrote that the Primacy of the Church was annexed to the Roman Episcopate by the authority of Phocas, but also Wyclif and Hus, who, as reported in Waldensis (Book 2, doct. Fidei, ch. 7), said this was done by the decree of Constantine the Great; likewise Luther and Calvin, of whom the former, in his book On the power of the Pope, pinned the same on a statute of Constantine IV, the latter (Book 4, Instit., ch. 6) on a decree of the Emperors Pepin and Charlemagne. Because all these are later in time, and cannot give a spiritual power which they themselves do not have. Fr. Adam Tanner may be consulted in the Dioptra Fidei, Book 3, ch. 6, where he refutes this argument of the Adversaries at length.
XXIX. Respon. II. <i>ad argumentum secundum ex Conciliis & Patribus depromptum.</i> Longè alienissimum esse à veritate, quod olim nec Concilia, nec Patres agnoverint primatum Romani Episcopi: & quod ipsi Romani Pontifices arrogare eundem sibi non fuerint ausi. Nam contrarium apertissimè ostendit Bellarminus Lib. 2. de Pontifice à c. 12. adductis quàm plurimis eorum luculentis testimoniis, quod ipsum & nos hactenus fecimus, & satis etiam constat ex recens cit. constitutione Novell. 131. collect. 9. tit. 14. c. 2. Ubi Justinianus: <i>sancimus</i>, inquit, <i>secundum earum Sacrarum</i> scil. <i>quatuor Synodorum</i> Nicænæ, Constantinopolitanæ, Ephesinæ primæ, & Chalcedonensis, de quibus immediatè loquebatur (Imperator) <i>definitiones</i>, <i>sanctissimum Senioris Romæ Papam primum esse omnium Sacerdotum: Beatissimum autem Archi-Episcopum Constantinopolitanum novæ Romæ secundum habere locum post Sanctam Apostolicam Senioris Romæ Sedem, aliis autem omnibus Sedibus præponitur.</i> Ad		XXIX. We reply, II, <i>to the second argument, brought out from the Councils and Fathers:</i> that it is far most alien from the truth that of old neither Councils nor Fathers acknowledged the primacy of the Roman Bishop, and that the Roman Pontiffs themselves did not dare to arrogate it to themselves. For the contrary is most openly shown by Bellarmine (Book 2, On the Pontiff, from ch. 12), with very many luminous testimonies of them adduced — which we too have done thus far; and it is also sufficiently evident from the recently cited constitution Novella 131 (collect. 9, tit. 14, c. 2), where Justinian says: <i>we sanction, according to the definitions of those Sacred — namely the four — Synods, of Nicaea, of Constantinople, of first Ephesus, and of Chalcedon, of which (the Emperor) was speaking immediately before, that the most holy Pope of elder Rome is the first of all Priests, and that the Most Blessed Arch-Bishop of Constantinople, the new Rome, holds the second place after the Holy Apostolic See of elder Rome, and is preferred to all the other Sees.</i> To the first instance we say that the appellation of Brother in no way impedes the

Latin		English
1. instantiam dicimus, Fratris appellationem nihil officere Primatui, etenim omnes Fideles se mutuò Fratres vocabant tanquam ejusdem Fidei consortes. Ut ergo Episcopi Chalcedonenses profiterentur, se in Fide cum Romano Pontifice conspirare, Fratrem eum nominârunt; interim aliis modis ejus eminentiam protestantes; quia scil. primum locum dederunt Legatis pontificiis, & Leonem I. tunc Pontificem honorificentissimis titulis affecerunt, ut constat ex Act. 1. & 2. ubi Ætius Episcopus Nicopolis eundem S. Leonem Dominum nostrum & sanctissimum Papam vocat; <i>quoniam</i> inquit, <i>nunc Domini nostri & Sanctissimi Papæ lecta est Epistola</i>, ut refert Bellarm. c. 31. Ad 2. Patres ibi collocatos non prohibuisse appellationem ad Romanum pontificem, ut falsò citant Hæretici, sed supplicibus litteris deprecatos rigidiorum modum procedendi per armatum militem, ut ostendit Cardinalis Baronius & hujus Compendiator Spondanus circa annum Christi 419. Cæterum quod omnes Episcopi totius Orbis, qui in judiciis Ecclesiasticis sentiunt se gravatos, ab Episcopis & synodis provincialibus possint appellare, & confugere ad Romanum pontificem tanquam ad Superiorem Judicem, cui reliqui omnes Episcopi subjecti esse debeant, & à cujus sententia ulterius appellare non liceat, patet apertissimè ex Cócil. Sardicési can. 4. ubi decernitur: <i>si Episcopus aliquis deponatur, & iste contra hoc judicium Synodi Provincialis ad Papam appellet, ne alius in locum illius destinatus ordinetur, nisi causa depositionis in judicio Romani Episcopi fuerit determinata & approbata</i>. Quare calumnia est Calvinii, quando ait, appellationes fuisse derisas; imò exceptas cum honore, & efficaces fuisse, ostendit Baronius loc. cit. & suo exemplo docet D. Athanasius vir Catholicissimus, sanctissimus, & doctissimus, qui ab Episcopis Orientalibus appellavit ad Julium		Primacy, for all the Faithful called one another Brothers as sharers of the same Faith. In order therefore that the Bishops of Chalcedon might profess that they conspired in Faith with the Roman Pontiff, they named him Brother; meanwhile protesting his eminence in other ways: since, namely, they gave the first place to the pontifical Legates, and honored Leo I, then Pontiff, with most honorific titles, as is evident from Acts 1 and 2, where Aetius, Bishop of Nicopolis, calls the same St. Leo our Lord and most holy Pope: <i>since</i>, he says, <i>now the Epistle of our Lord and Most Holy Pope has been read</i> — as Bellarmine reports, ch. 31. To the second: the Fathers there assembled did not prohibit appeal to the Roman pontiff, as the Heretics falsely cite, but by suppliant letters deprecated the too-rigid mode of proceeding by armed soldiery, as Cardinal Baronius shows, and his Epitomator Spondanus, around the year of Christ 419. For the rest, that all the Bishops of the whole World who in Ecclesiastical judgments feel themselves aggrieved may appeal from Bishops and provincial synods, and take refuge with the Roman pontiff as with a Superior Judge, to whom all the remaining Bishops must be subject, and from whose sentence it is not lawful to appeal further, is most openly evident from canon 4 of the Council of Sardica, where it is decreed: <i>if any Bishop be deposed, and he appeal against this judgment of the Provincial Synod to the Pope, let no other be ordained as appointed in his place, unless the cause of the deposition shall have been determined and approved in the judgment of the Roman Bishop</i>. Wherefore it is a calumny of Calvin when he says that appeals were derided; nay, that they were received with honor, and were efficacious, Baronius shows (loc. cit.); and by his own example St. Athanasius teaches it — a man most Catholic, most holy, and most learned — who appealed from the Eastern Bishops to Julius the Roman Pontiff after the year of Christ 341, and by him was restored.

<i>Latin</i>		<i>English</i>
Romanum Pontificem post annum Christi 341. & ab eodem fuit restitutus.		
XXX. Quid ad hæc Amesius, Gerhardus, Molinæus, Heilbrunner, & alii Sectarii? tria nequicquam tentant effugia. <i>Primum.</i> Appellationes Ecclesiasticas non esse ad jurisdictionem Superiorem, sed ad communem fraterni auxilii communicationem. Scil. ignoravit tota Antiquitas, quid sit Appellatio Ecclesiastica? profectò Athanasius Patriarcha Alexandrinus injustè ab Orientalibus damnatus apud Julium Papam non qualemcunque auxilii communicationem petiit, sed tanquam apud Superiorem Judicem justam defensionem requisivit. <i>Secundum.</i> Concilium Sardicense, teste Bellarmino, non esse ex integro approbatum. Trecenti Patres hujus Concilii confirmârunt Fidem Catholicam; unde ista Synodus dicitur pars vel appendix I. Nicæni Concilii: & quidquid illi Patres statuerunt, fuit universim receptum: atque inter ista etiam jus appellandi ad Romanum Pontificem habetur approbatum. Præter prædictos Patres fuerunt quidem septuaginta sex alii Episcopi Orientales, qui fidem Arianam subscripserunt; sed contra reliquorum decreta nihil potuerunt. <i>Tertium.</i> Episcopi Orientales in Concilio Antiocheno restiterunt Julio Pontifici, quod Athanasium ad se fugientem, qui in Synodo Orientali fuerat damnatus, absolvisset, & Sedi suæ restituisset, causantes, plus istum autoritatis usurpare, quàm debebat. Ergo ex hoc facto nihil probatur. Hoc effugio magis implicant se Adversarii. Nam inter illos Episcopos, qui Julio Papæ restiterunt, erant 36. Arianæ, ut refert Baronius & ex isto Spondanus ad an. Christi 341. num. 3. contra verò Athanasius, qui pro Julio stetit, vir erat, ut diximus, fide Catholicâ, sanctitate vitæ, & doctrinæ excellentiâ præstantissimus. Huic ergo argumento: <i>Episcopi Orientales, qui magnâ ex parte erant Hæretici, restiterunt Papæ. Ergo non habebant illum pro Capite Ecclesiæ.</i> Huic, inquam, argumento nos		XXX. What do Amesius, Gerhard, du Moulin, Heilbrunner, and the other Sectarians say to these things? In vain they attempt three evasions. <i>First:</i> that Ecclesiastical Appeals are not to a Superior jurisdiction, but to a common communication of fraternal aid. Did all Antiquity, forsooth, not know what an Ecclesiastical Appeal is? Assuredly Athanasius, Patriarch of Alexandria, unjustly condemned by the Easterners, sought from Pope Julius no mere communication of aid of whatever sort, but required a just defense as before a Superior Judge. <i>Second:</i> that the Council of Sardica, on Bellarmine's testimony, was not approved in its entirety. Three hundred Fathers of this Council confirmed the Catholic Faith; whence that Synod is called a part or appendix of the First Council of Nicaea: and whatever those Fathers determined was universally received — and among those things the right of appealing to the Roman Pontiff is held approved. Besides the aforesaid Fathers there were indeed seventy-six other Eastern Bishops who subscribed the Arian creed; but against the decrees of the rest they could do nothing. <i>Third:</i> the Eastern Bishops in the Council of Antioch resisted Pope Julius because he had absolved Athanasius, who had fled to him after being condemned in an Eastern Synod, and had restored him to his See — alleging that he usurped more authority than he ought. Therefore (they say) nothing is proved from this deed. By this evasion the Adversaries entangle themselves the more. For among those Bishops who resisted Pope Julius there were 36 Arians, as Baronius reports, and from him Spondanus, at the year of Christ 341, num. 3; whereas on the contrary Athanasius, who stood for Julius, was a man, as we have said, most outstanding in Catholic faith, in sanctity of life, and in excellence of doctrine. To this argument, then — <i>The Eastern Bishops, who in great part were Heretics, resisted the Pope: therefore they did not hold him for the Head of the Church</i> — to this argument, I say, we oppose this other: <i>Athanasius, a man most Catholic, most upright, and most learned, appealed from the Eastern Bishops to the Roman Pontiff as to a Superior Judge: therefore he acknowledged him for a Superior</i>

<i>Latin</i>		<i>English</i>
opponimus istud alterum: <i>Athanasius vir Catholicissimus, integerrimus, & doctissimus ab Episcopis Orientalibus appellavit ad Pontificem Romanum tanquam Superiorem Judicem. Ergo agnovit illum pro Judice Superiore. Utra harum argumentationum præstat?</i> Adversarii credunt Episcopis Hæreticis: Nos Patriarchæ Catholico, eique Sanctissimo juxta ac doctissimo adstipulamur. Nec silentio prætereundum, prædictos Episcopos Hæreticos postmodum errorem suum agnoscentes & detestantes Romam venisse, & supplices à Julio Papa veniam poposcisse, ut testatur ipsemet Athanasius in Apolog. contra Arianos, & refert Spondanus ad ann. Christi 351. n. 7.		<i>Judge.</i> Which of these two argumentations is the stronger? The Adversaries believe Heretical Bishops: we side with a Catholic Patriarch, one as most holy as he is most learned. Nor should it be passed over in silence that the aforesaid Heretical Bishops, afterwards acknowledging and detesting their error, came to Rome and as suppliants begged pardon of Pope Julius, as Athanasius himself testifies in the Apology against the Arians, and Spondanus reports at the year of Christ 351, n. 7.
XXXI. Ad 3. instantiam ex Patribus dicimus. Polycratem & Irenæum nunquam denegasse Victori Papæ potestatem excommunicandi Episcopos Asiæ, sed putaverunt, causam hujus excommunicationis ferendæ non fuisse sufficientem, ideòque se illi opposuerunt, ut bene notat Baronius ad ann. Christi 198. id, quod non derogat potestati & jurisdictioni. Ad 4. S. Hieronymum non æquasse Episcopos Papæ, quatenus est Pastor universalis, sed quatenus est Episcopus Romanus; erravit tamen, si putavit discrimen Sacerdotum & Episcoporum solo jure humano fuisse introductum, quæ opinio damnata est in Tridentino Sess. 23. c. 4. ut pluribus declarat Vasquez 3. part. Disp. 230. c. 1. Verùm ab errore eundem excusat Greg. de Valent. Tom. 4. Disp. 9. Q. 1. pun. 2. nos de hoc agemus suo loco. Ad 5. deniquè instantiam dicimus. Cypriani priora verba ab Hæreticis corrupta fuisse, qui fraudulenter assuerunt illa verba, <i>quàm Romani</i>; cum Auctor plus dicere non voluerit, nisi <i>authoritatem Episcoporum Africanorum non esse minorem, quam ut causas dijudicare valeant</i>: posteriora verba Cypriani in Concilio Carthaginensi III. prolata non esse curanda. Tum quia illud Concilium fuit illegitimum. Tum quia		XXXI. To the third instance, from the Fathers, we say: Polycrates and Irenaeus never denied to Pope Victor the power of excommunicating the Bishops of Asia, but they thought the cause for inflicting this excommunication was not sufficient, and therefore opposed themselves to him, as Baronius well notes at the year of Christ 198 — which does not derogate from the power and jurisdiction. To the fourth: St. Jerome did not equate the Bishops with the Pope insofar as he is universal Pastor, but insofar as he is Bishop of Rome; yet he erred, if he thought the distinction of Priests and Bishops was introduced by human law alone — an opinion condemned in the Council of Trent, Sess. 23, c. 4, as Vázquez declares at length (3rd part, Disp. 230, c. 1). But Gregory of Valencia excuses him from error (Tom. 4, Disp. 9, Q. 1, pun. 2); we shall treat of this in its place. To the fifth instance, finally, we say: the earlier words of Cyprian were corrupted by the Heretics, who fraudulently sewed on those words, <i>than the Romans</i>; whereas the Author meant to say no more than that <i>the authority of the African Bishops is not too little for them to be able to judge causes</i>. The later words of Cyprian, uttered in the Third Council of Carthage, are not to be regarded: both because that Council was illegitimate; and because Cyprian at that time was engaged in error concerning the Sacrament of Baptism, as though it could not be validly administered by

<i>Latin</i>		<i>English</i>
Cyprianus eo tempore versabatur in errore circa Sacramentum Baptismi, quasi ab Hæreticis validè administrari non posset, ideòque conversi denuò baptizandi forent. Quapropter à Stephano Papa oppositum ex Apostolica traditione tenente objurgatus ex ira & concitatione Firmiliani Episcopi Cæsareæ Cappadociæ calidius æquo locutus est, & peccavit, inquit S. Augustinus lib. 3. contra Donatist. cap. 18. quod non voluerit Stephano Papæ obedire. Sed hunc suum errorem postea correxist, & effuso sanguine eluit, teste eodem Augustin. epist. 48. ad Vicentium. Videri etiam potest Bellarm. lib. 2. de Pontif. c. 25.		Heretics, and therefore converts would have to be baptized anew. Wherefore, being rebuked by Pope Stephen, who held the opposite from Apostolic tradition, out of anger and the instigation of Firmilian, Bishop of Caesarea in Cappadocia, he spoke more hotly than was just, and sinned, says St. Augustine (book 3 against the Donatists, ch. 18), in that he would not obey Pope Stephen. But this his error he afterwards corrected, and washed away with the shedding of his blood, on the witness of the same Augustine, epistle 48 to Vincentius. Bellarmine may also be consulted, book 2, On the Pontiff, ch. 25.
XXXII. Respon. 3. <i>ad argumentum, ex vita & moribus Summorum Pontificum arreptum</i>, quemadmodum tam Christiani universim, quàm speciatim non pauci piissimi Imperatores aliique Principes indigna quædam judicia à Tacito, Luciano, Zosimo, Rutilio, Eunapio & aliis Ethnicis Scriptoribus ferre debent, ita etiam de Summis Pontificibus scandalosa multa fuerunt scripta, cum inter istos & Germanicos Imperatores graves ac longæ essent controversiæ, ipsèque populus Christianus in duas ferè partes se divideret, quarum una Ecclesiæ Romanæ, altera Cæsaribus adhæsere. Unde adhærentes Imperatoribus vitam moresque Paparum variis proscindere calumniis laborârunt, quales nominatim fuerunt Aventinus, Balæus, Benno Pseudo-Cardinalis, Wierus, Thummus, & forsân etiam Platina, Sigebertus & alii Cæsereæ Dignitatis ad vitium usque studiosi. In specie loquendo.		XXXII. We reply, 3, <i>to the argument snatched from the life and morals of the Supreme Pontiffs</i>: just as both Christians universally, and in particular not a few most pious Emperors and other Princes, must bear certain unworthy judgments from Tacitus, Lucian, Zosimus, Rutilius, Eunapius, and other Pagan Writers, so also concerning the Supreme Pontiffs many scandalous things were written, since between them and the Germanic Emperors there were grave and long controversies, and the Christian people itself was divided into almost two parties, of which the one adhered to the Roman Church, the other to the Caesars. Whence those adhering to the Emperors labored to tear the life and morals of the Popes with various calumnies — such, by name, were Aventinus, Bale, Benno the Pseudo-Cardinal, Wier, Thummus, and perhaps also Platina, Sigebert, and others zealous for the Caesarean Dignity even to a fault. To speak in detail:
XXXIII. Sylvester II. immeritò Magiæ incusatur, ut demonstrat Onuphrius Panvinius in addit. ad Platinam. Et Cardinalis Baronius A. C. 999. ex Ditmaro lib. 6. Helgald in vita Roberti Regis Francorum, Glabro, Lamberto, Hermann, Mariano Scoto, qui omnes circa annum Christi 1000. viventes Sylvestrum II. tum ob doctrinam laudant, tum in suis chronologiis		XXXIII. Sylvester II is undeservedly accused of Magic, as Onuphrius Panvinius demonstrates in the additions to Platina; and Cardinal Baronius, A.D. 999, from Dithmar (book 6), from Helgald in the life of Robert King of the Franks, from Glaber, Lambert, Hermann, Marianus Scotus — who, all living around the year of Christ 1000, both praise Sylvester II for his learning and place him in their chronologies as true Pope after Gregory V, no mention being

<i>Latin</i>		<i>English</i>
tanquam verum Papam post Gregorium V. collocant, nullâ magiæ diabolicæ mentione factâ. Unde Sigebertus cæterique tempore longè posteriores fidem hac in re non merentur. Christophorus Lehman in Chron. Spirensi lib. 4. cap. 15. Sylvestrum II. adjungit Testibus Veritatis, asserens ex Theodorico de Niem, illum ob eximiam eruditionem à Romanis odio habitum, dictumque fuisse, quod Magus esset. Taceo Sebastianum Franck Lutheranum, qui relationem istam de Sylvestro pro fabula habet, cui consentit Kranzius lib. 5. metrop. fol. 298. D. Antoninus bonâ fide procedens, re nondum expensâ à Bennone & Martino Polono seduci se permisit.		made of diabolical magic. Whence Sigebert and the rest, far later in time, deserve no credence in this matter. Christoph Lehmann, in the Chronicle of Speyer (book 4, ch. 15), joins Sylvester II to the Witnesses of the Truth, asserting from Theodoric of Niem that he was held in hatred by the Romans on account of his exceptional erudition, and that it was said that he was a Magician. I pass over Sebastian Franck, a Lutheran, who holds that tale about Sylvester for a fable, with whom Krantz agrees (book 5, metrop., fol. 298). St. Antoninus, proceeding in good faith, the matter not yet weighed, let himself be led astray by Benno and Martin of Poland.
XXXIV. Quindecim Summos Pontifices à Sylvestro II. usque ad Gregorium VII. quos omnes magiæ hæretici arguunt, præclarè defenderunt Caspar Lechner in Thummio Prædicante, & Laurentius Forer in Manuali Lutherano Part. 3. cap. 2. præcipuè verò in castigatione Apologiæ Thummianæ à cap. 2. usque ad 7. ubi miseram Thummii Apologiam luculenter ad nihilum redigit, & Naucleri allegationem contra hos 15. Papas longè falsissimam ostendit. Odio turgens Cardinalis Benno contra Romanos Pontifices, item Calvinista Balæus non sunt testes idonei, sicuti Forerus loc. cit. peculiariter ostendit.		XXXIV. The fifteen Supreme Pontiffs from Sylvester II to Gregory VII, all of whom the heretics accuse of magic, were splendidly defended by Caspar Lechner in the “Thummius Preaching,” and by Laurence Forer in the Lutheran Manual, Part 3, ch. 2 — but especially in the castigation of Thummius’s Apology, from ch. 2 to 7, where he luminously reduces Thummius’s wretched Apology to nothing, and shows Nauclerus’s allegation against these 15 Popes to be utterly false. Cardinal Benno, swollen with hatred against the Roman Pontiffs, and likewise the Calvinist Bale, are not suitable witnesses, as Forer particularly shows, loc. cit.
XXXV. Formosum I. scribit Baronius A. C. 891. laudatissimum Papam extitisse tum religione tum morum integritate atque doctrinâ, idque ex testimonio Luitprandi, Anastasii Bibliothecarii, & Hincmari Rhemensis Archiepiscopi. Et quamvis A. C. 892. Widonem, & sequenti anno ejus Filium Lambertum: anno autem 896. Arnulphum Romanos Imperatores coronaverit, id tamen prædicti Authores vitio non vertunt, nec idcirco eum reprehendunt, cum non nisi ex gravibus & justis causis illud fecerit. Bonifacius VI. inter Papas numerari non debet, sicuti etiam Baronius A. C. 897. eundem arcet. Sergium III. & hujus		XXXV. Of Formosus I, Baronius writes (A.D. 891) that he stood forth as a most praised Pope both in religion and in integrity of morals and in doctrine — and that on the testimony of Liutprand, Anastasius the Librarian, and Hincmar, Archbishop of Reims. And although in A.D. 892 he crowned Wido, and the following year his Son Lambert, and in the year 896 Arnulf, as Roman Emperors, the aforesaid Authors do not turn this to his fault, nor do they on that account reprehend him, since he did it only from grave and just causes. Boniface VI ought not to be numbered among the Popes, as Baronius too (A.D. 897) excludes him. Sergius III, and his illegitimate Son John XI, likewise John XII, and criminal Pontiffs of this sort we

<i>Latin</i>		<i>English</i>
Filium illegitimum Joan. XI. item Joannem XII. & hujusmodi sceleratos Pontifices non excusamus, attamen affirmamus, eos Dignitati & Potestati Sedis Apostolicæ tam parùm præjudicare potuisse, quàm impius Alcimus, Annas, Caiphaz & hujusmodi Judæorum Summi Pontifices Cathedræ Moysis præjudicaverint: item quàm parùm Officium, potestatem & auctoritatem imminuerint scelera multa, quæ non pauci ex Regibus & Principibus perpetrârunt, concessio ipsis regno & principatu abuti. Hisce flagitiosis Papis minimè est annumerandus Gregorius VII. qui Pontifex fuit Apostolicæ vitæ & Zeli pro DEO & Ecclesia, qui etiam inter tot ac tanta negotia adeò contemplatione excelluit, ut & mentis extasim sæpe pateretur, & cælestibus revelationibus non rarò visitaretur, ut de ipso scribit Baronius ad annum Christi 1073. Et quamvis detestabiles ejus inimici turpem illi notam inurere machinarentur, statim tamen iste rumor ob viri Sanctitatem & innocentiam ubique notam evanuit, ut tradit idem Author ad Annum Christi 1074.		do not excuse; yet we affirm that they could as little prejudice the Dignity and Power of the Apostolic See as the impious Alcimus, Annas, Caiphaz, and Jewish High Priests of that sort prejudiced the Chair of Moses; likewise, that many crimes which not a few Kings and Princes have perpetrated — abusing the kingdom and principate granted them — have as little diminished the Office, power, and authority. Among these flagitious Popes Gregory VII is by no means to be numbered, who was a Pontiff of Apostolic life and of Zeal for GOD and the Church, and who, even amid so many and such great affairs, so excelled in contemplation that he often suffered ecstasy of mind and was not rarely visited with heavenly revelations, as Baronius writes of him at the year of Christ 1073. And although his detestable enemies schemed to brand him with a shameful mark, that rumor immediately vanished, because of the man's Sanctity and his innocence known everywhere, as the same Author relates at the Year of Christ 1074.
XXXVI. Genebrardus Adversariis non patrocinator. Nam 1. de quindecim Papis, qui fuerint Magi, nullam penitus facit mentionem; imò apertè A. C. 1002. fabulosa censet omnia quæ de Sylvestri II. magia, morte, diaboli percussione sparguntur, addens ex Blondo dec. 2. lib. 3. quod nullus Scriptorum affirmare dubitet, Sylvestrum II. litteris moribusque ornatissimum fuisse. 2. aliqui ex dictis Pontificibus primùm post Leonem IX. vixère, qui vi verborum Genebrardi antiquam Pontificum integritatem in Sedem Apostolicam revocavit, nempe Victor II. Stephanus X. Nicolaus II. Alexander II. omnes à Genebrardo laudatissimi Papæ. Ubi ergo sunt 15. magi usque ad Gregorium VII? 3. quod attinet ad Papas per 150. tantoperè infamatos ipse Genebrardus aliquos excipit, nimirum Martinum II. Agapetum II. Joannem XVII. Sergium IV. Gregorium VI. Adhæc 14. Papæ inter		XXXVI. Genebrard gives no patronage to the Adversaries. For, 1, of the fifteen Popes who were supposed Magicians he makes no mention at all; nay, openly, at A.D. 1002, he judges fabulous everything that is spread about concerning Sylvester II's magic, his death, his being struck by the devil, adding from Blondus (dec. 2, book 3) that no Writer hesitates to affirm that Sylvester II was most adorned in letters and morals. 2. Some of the said Pontiffs lived only after Leo IX — who, by the force of Genebrard's own words, recalled the ancient integrity of the Pontiffs to the Apostolic See — namely Victor II, Stephen X, Nicholas II, Alexander II, all Popes most praised by Genebrard. Where then are the 15 magicians down to Gregory VII? 3. As to the Popes so greatly defamed through the 150 years, Genebrard himself excepts some, namely Martin II, Agapetus II, John XVII, Sergius IV, Gregory VI. Moreover, 14 Popes among them ruled the Church for the briefest time — namely for only a very few days or months, or

<i>Latin</i>		<i>English</i>
illos brevissimo tempore rexerunt Ecclesiam, scil. per paucos solùm dies vel menses, aut vix medium annum, quorum vita mala eò minùs est exaggeranda, quò extitit brevior. 4. Causa hujus mali non erat penes Sedem Apostolicam, sed aliunde proveniebat: <i>tanti sceleris</i>, inquit Genebrardus, <i>rei sunt Germani Imperatores, qui ita premebant Ecclesiam, ut sublati Canonici electionibus pro libidine & sæpius pecunia & pactis summos darent Pontifices, & recusaret electus Pontificatum suscipere, priusquam ab illis confirmaretur. Aliqui etiam vi aut largitione Sedem occupabant.</i> 5. Dato, non concesso, quod prædicti Papæ non tantùm scelerati, sed etiam magi fuerint, id tamen publicè notum non fuit, nec unquam aliquid hujusmodi Ecclesiæ publicè exhibuerunt, aut in Sede Petri docuerunt.		scarcely half a year — whose evil life is the less to be exaggerated, the shorter it was. 4. The cause of this evil did not lie with the Apostolic See, but came from elsewhere: <i>of so great a crime</i>, says Genebrard, <i>the guilty are the Germanic Emperors, who so pressed upon the Church that, Canonical elections being abolished, they gave supreme Pontiffs at their pleasure, and rather often for money and by pacts, and the one elected refused to take up the Pontificate before he was confirmed by them. Some also occupied the See by force or by bribery.</i> 5. Granted, not conceded, that the aforesaid Popes were not only criminals but even magicians, this nevertheless was not publicly known, nor did they ever publicly exhibit anything of the sort to the Church, or teach it in the See of Peter.
XXXVII. Ex intrusis aut Simoniacè ingressis Pontificibus quidam fuerunt repulsi: aliqui autem subinde retenti ex consensu Cleri, & veluti legitimi Pontifices postea consuetis ritibus electi, atque ab Ecclesia acceptati; eò quod satius videretur, illos tolerari, retineriquè, quàm Ecclesiam tristi schismate conscindi, ut supra jam diximus. An ex summis Pontificibus aliqui in hæresim fuerint aliquando lapsi, & formales hæretici extiterint, in sequenti Controversia videbimus, & infra etiam fabulam illam stolidam de Joanne Papissa, cui nullus vir sapiens fidem habet, ex instituto refutabimus. Solùm nunc addendum, quando Genebrardus Papas flagitiosos vocat apotacticos & Apostaticos, illum non loqui de fide, quasi à Fide Catholica apostataverint: Sed solum de moribus, cum à vita & virtutibus Apostolicis discesserint.		XXXVII. Of the Pontiffs intruded, or entered by Simony, some were driven off; others however were subsequently retained by the consent of the Clergy, and afterwards elected as legitimate Pontiffs with the customary rites, and accepted by the Church; because it seemed preferable that they be tolerated and retained than that the Church be torn asunder by a sorrowful schism, as we have already said above. Whether some of the supreme Pontiffs have at some time lapsed into heresy and stood forth as formal heretics, we shall see in the following Controversy; and below we shall also refute, ex professo, that stupid fable of Pope Joan, to which no wise man gives credence. Only this is now to be added: when Genebrard calls the flagitious Popes apotactici and Apostatics, he is not speaking of faith, as though they had apostatized from the Catholic Faith, but only of morals, since they departed from the Apostolic life and virtues.
XXXVIII. Respond. 4. <i>ad argumentum ex ridiculis, ut ajunt hæretici, rationibus deductum pro Primatu Pontificio.</i> 1. quoad Historiam. Negamus cum Bellarmino aliisque Catholicis		XXXVIII. We reply, 4, <i>to the argument deduced from the — as the heretics say — ridiculous reasons for the Pontifical Primacy.</i> 1. As to the History: We deny, with Bellarmine and other Catholic Doctors, that the allegation

<i>Latin</i>		<i>English</i>
Doctoribus, allegationem Nicæni Concilii fuisse fictitiam, quantumvis Episcopi Africani citatum canonem in suis exemplaribus reperire non potuerint, quia habebant corruptos ab Arianis & Donatistis hæreticis codices, ut ostendit Card. Baronius A. C. 347. & 419. Potuit etiam nomine Concilii Nicæni intelligi Sardicense, quod tanquam appendix Concilii Nicæni habebatur, quia huic iidem Episcopi interfuisse; in Concilio autem Sardicensi expressè habetur ille canon à Pontifice allegatus, ut ibidem ostendit Baronius. Videri etiam potest summa Conciliorum per Barthol. Carranzam collecta, ubi ad finem adjiciuntur canones Concilii Nicæni nuper reperti. 2. quoad Concilium Florentinum & Eugenium IV. Papam. Quis non credat, quod quotidiana experientia docet, ægros tremulis manibus scribere etiam posse? Immeritò igitur prolatio litterarum Patriarchæ Constantinopolitani jam Florentiæ defuncti in fraudis suspicionem vocatur; cùm præsertim multi Græci adfuerint, quibus nota erat manus Patriarchæ, nec tamen contra Epistolam replicarint; certè Pontifex nullam habuit causam fingendi litteras, cum Concilium jam prius stetisset pro Primatu Romani Pontificis. Litteræ citatæ Josephi Patriarchæ Constantinopolitani videri possunt in eadem summa Carranzæ fol. mihi 455. 3. quoad loca Sacræ Scripturæ. Pontifices hæc adducere voluerunt non in litterali, sed allegorico sensu, nec tanquam suæ causæ fundamenta, sed ornamenta & flosculos. Nominatim Anacletus nullo modo insinuavit, quod nomen Cephas à Græco κεφαλὴ derivetur, sed quod in re idem significet metaphora Petræ & Capitis, quidquid dicat Glossator. Bonifacio etiam aperta fit injuria, quasi ex primis verbis Genes. <i>in principio creavit DEUS cælum & terram</i>, &c. voluerit evincere Pontificem esse Caput totius mundi; ex textu enim totius Epistolæ apparet, longè aliam mentem ipsius fuisse; nam cum ex Unitate DEI intulisset, unicum esse DEI		of the Nicene Council was fictitious, however much the African Bishops could not find the cited canon in their exemplars — because they had codices corrupted by the Arian and Donatist heretics, as Cardinal Baronius shows, A.D. 347 and 419. Also, by the name of the Nicene Council could be understood that of Sardica, which was held as an appendix of the Nicene Council because the same Bishops took part in it; and in the Council of Sardica that canon alleged by the Pontiff is expressly found, as Baronius shows in the same place. There may also be seen the summa of the Councils collected by Bartholomew Carranza, where at the end are added the canons of the Council of Nicaea recently discovered. 2. As to the Council of Florence and Pope Eugene IV: Who would not believe — what daily experience teaches — that the sick can write even with trembling hands? Undeservedly, therefore, is the production of the letters of the Patriarch of Constantinople, already deceased at Florence, called into suspicion of fraud; especially since many Greeks were present to whom the Patriarch's hand was known, and yet they made no reply against the Epistle; certainly the Pontiff had no motive for forging letters, since the Council had already before stood for the Primacy of the Roman Pontiff. The cited letters of the Patriarch Joseph may be seen in the same summa of Carranza, fol. (in my copy) 455. 3. As to the passages of Holy Scripture: the Pontiffs wished to adduce these not in the literal but in the allegorical sense, and not as the foundations of their cause, but as ornaments and posies. In particular, Anacletus in no way insinuated that the name Cephas derives from the Greek κεφαλὴ, but that in reality the metaphor of the Rock and of the Head signify the same thing, whatever the Glossator may say. To Boniface likewise open injury is done, as though from the first words of Genesis — <i>in the beginning GOD created heaven and earth, etc.</i> — he had wished to establish that the Pontiff is the Head of the whole world; for from the text of the whole Epistle it appears that his mind was far different: for when, from the Unity of GOD, he had inferred that there is one single Vicar of GOD, he objected to himself that the Manichæans posit two GODS, creators of the world, against whom he opposes

<i>Latin</i>		<i>English</i>
Vicarium, sibimet objecit, Manichæos ponere duos DEOS creatores mundi, quibus opponit cit. verba Genes. quod non in principiis, sed in principio, id est, ab uno principio sit mundus creatus. Ecce igitur quam iniquè hæretici calumniantur ipsos Pontifices, dum ajunt, illos falsis & absurdis argumentis suam probasse potestatem. Nihil falsi, nihil ridiculi ostendunt: Sectarii sese solùm ex mendaciis & injuriis compositos esse demonstrant.		the cited words of Genesis: that the world was created not in beginnings, but in the beginning, that is, from one beginning. See then how iniquitously the heretics calumniate the Pontiffs themselves when they say that they proved their power by false and absurd arguments. Nothing false, nothing ridiculous do they exhibit: the Sectarians only demonstrate that they themselves are composed of lies and insults.
XXXIX. <i>Error secundus est.</i> Innocentium XI. Papam pro tempore existentem non esse verum & legitimum Pontificem ac Petri Successorem. Ita iidem hæretici, qui duplici maximè instantia evincere hoc nituntur. Primam sumunt a Formoso, qui habitus pro vero & legitimo Pontifice obiit A. C. 896. die 14. Decemb. postquam sexennio Ecclesiæ præfuit ab eadem acceptatus: & tamen hunc Antecessorem suum Stephanus VII. (dictus sextus) damnavit tanquam illegitimum Pontificem, ejusque acta reprobavit. Alteram suggerit schisma in Ecclesia XXIII. & omnium gravissimum simul & longissimum, scil. per annos 36. usque ad Concilium Constantiense. Nam postquam Gregorius XI. Avenione Romam Sede translata in Urbe mortem obiit, in ejus locum à Cardinalibus electus fuit Urbanus VI. duabus tertiis suffragiorum in hunc conspirantibus; unde electio ejusdem tanquam legitima fuit promulgata, & per Orbem Christianum acceptata. Verùm non multis post diebus aliqui Cardinales electioni huic reclamarunt, & in Galliam fugientes elegerunt Clementem VII. cui post annos 14. substitutus est Petrus de Luna Aragonius, qui obstinatissimo animo dignitatis umbraticæ Benedictus XIII. dici voluit. Interea temporis Urbano VI. successit Innocentius VII. & Gregorius XII. volensque Concilium Pisanum huic schismati mederi creavit Alexandrum V. unde tres simul Pontifices sederunt Gregorius XII. Benedictus XIII. & Alexander V. cui		XXXIX. <i>The second Error is:</i> That Innocent XI, the Pope existing for the time being, is not the true and legitimate Pontiff and Successor of Peter. So the same heretics, who strive to establish this chiefly by a twofold instance. The first they take from Formosus, who, held for the true and legitimate Pontiff, died in the year of Christ 896, on the 14th of December, after he had presided over the Church for six years, accepted by her: and yet Stephen VII (called the sixth) condemned this his Predecessor as an illegitimate Pontiff and reprobated his acts. The other is suggested by the twenty-third schism in the Church, at once the gravest and the longest of all, lasting namely thirty-six years, down to the Council of Constance. For after Gregory XI, the See having been transferred from Avignon back to Rome, died in the City, Urban VI was elected in his place by the Cardinals, two thirds of the votes conspiring upon him; whence his election was promulgated as legitimate, and accepted throughout the Christian World. But not many days afterward certain Cardinals protested against this election and, fleeing into France, elected Clement VII, to whom after 14 years was substituted Peter de Luna of Aragon, who with most obstinate spirit wished to be called Benedict XIII — a dignity of shadow. Meanwhile Innocent VII and Gregory XII succeeded Urban VI, and the Council of Pisa, wishing to remedy this schism, created Alexander V; whence three Pontiffs sat at once: Gregory XII, Benedict XIII, and Alexander V, to whom shortly afterward John XXIII succeeded, Gregory being still alive. Therefore at that time the universal Church neither proposed the election of Urban, nor was she bound to believe it as legitimate, and the succession in the See of Peter was manifestly

Latin		English
paulò post Joannes XXIII. successit, vivente adhuc Gregorio. Ergo tunc electionem Urbani nec universa proposuit Ecclesia, nec credere eam veluti legitimam debuit, fuitque successio in Sede Petri manifestè interrupta. Ergo Papa pro tempore existens Innocentius XI. non est verus ac legitimus Pontifex ac Petri Successor. His duabus instantiis Gerhardus lib. 1. fol. 283. addit istud argumentum. <i>De quo rationabiliter dubitari potest, an sit in Ecclesia, de eo etiam rationabiliter dubitari potest, an sit verus & legitimus Papa. Atqui de quolibet sic dubitari potest. Ergo &c.</i> Ratio Majoris est, quia legitimus Papa est Ecclesiæ Caput; qui autem non est in Ecclesia quomodo Caput hujus esse potest? Ratio Minoris est, quia de cujus sanctitate non constat, de illo sciri nequit, quod sit in Ecclesia cap. cum aliquis caus. 24. q. 3. <i>cum aliquis exit à veritate, à timore DEI, à fide, à charitate, exit de castris Ecclesiæ, etiamsi per Episcopi vocem minimè abjiciatur.</i>		interrupted. Therefore the Pope existing for the time being, Innocent XI, is not the true and legitimate Pontiff and Successor of Peter. To these two instances Gerhard (book 1, fol. 283) adds this argument: <i>Of whomever it can reasonably be doubted whether he is in the Church, of him it can also reasonably be doubted whether he is the true and legitimate Pope. But of anyone whatever this can be doubted. Therefore, etc.</i> The reason of the Major is that the legitimate Pope is the Head of the Church; but he who is not in the Church, how can he be its Head? The reason of the Minor is that of him whose sanctity is not established, it cannot be known that he is in the Church — chapter <i>cum aliquis</i>, cause 24, q. 3: <i>when anyone departs from the truth, from the fear of GOD, from faith, from charity, he departs from the camp of the Church, even if by the voice of the Bishop he is by no means cast out.</i>
XL. Errori huic rejiciendo occasionem dedit prædictum schisma; hoc enim sublato, Martinus V. Papa in Bulla relata in Concilio Constantiensi decretum illud fecit, cujus memini supra scil. ab Hæreticis Ecclesiæ Romanæ reconciliari volentibus primum omnium exigatur, <i>ut credant, Papam qui, expresso ejus nomine, pro tempore fuerit, esse canonicè electum, ac Successorem Petri, & in Ecclesia Dei supremam habere potestatem.</i> Advertit Palao Tr. 4. D. 1. pun. 5. §. 2. num. 11. aliud esse dicere: <i>non est de fide, Innocentium XI. esse verum Pontificem</i>, aliud: <i>eundem non esse verum Pontificem</i>; etenim hæc posterior propositio est temeraria, scandalosa, & planè hæretica: illam priorem non vult gravius censere propter aliquot celebres Theologos, qui defenderunt eam. Nos licet teneamus, de fide esse, Innocentium XI. verum esse Pontificem ac Petri Successorem, non tamen hic agimus contra illos Theologos, hæreseos eos incusando;		XL. To this error the aforesaid schism gave occasion; for when it had been removed, Pope Martin V, in the Bull recorded in the Council of Constance, made that decree which I mentioned above — namely, that from Heretics wishing to be reconciled to the Roman Church it should first of all be exacted <i>that they believe that the Pope who for the time being shall be, his name being expressly stated, is canonically elected, and the Successor of Peter, and holds supreme power in the Church of God.</i> Palao (Tract 4, Disp. 1, punct. 5, § 2, num. 11) observes that it is one thing to say: <i>it is not of faith that Innocent XI is the true Pontiff</i>, and another: <i>the same is not the true Pontiff</i>; for this latter proposition is temerarious, scandalous, and plainly heretical; the former he will not censure more gravely, on account of several celebrated Theologians who have defended it. We, although we hold that it is of faith that Innocent XI is the true Pontiff and Successor of Peter, nevertheless do not here contend against those Theologians by accusing them of heresy; because the revelation of this truth either has not been sufficiently proposed to them, or they

<i>Latin</i>		<i>English</i>
quia revelatio hujus veritatis eisdem vel non est sufficienter proposita, vel pertinaciter ei non resistunt, parati eandem credere, quodcumquē per Ecclesiam sufficienter propositam intellexerint. Itaque Sectariorum solūm errorem rejicimus, qui non solūm in communi omnes Pontifices Romanos habent pro illegitimis: Sed hunc etiam pro tempore existentem Papam Innocentium XI. negant, verum esse Pontificem legitimum Petri Successorem, quantumvis ab Ecclesia tanquam Canonicē electus & acceptatus fuerit. Instantiæ allatæ nequicquam Adversariis patrocinantur.		do not pertinaciously resist it, being ready to believe it whenever they shall have understood it to be sufficiently proposed by the Church. And so we reject only the error of the Sectarians, who not only in general hold all the Roman Pontiffs for illegitimate, but also deny that this Pope existing for the time being, Innocent XI, is the true legitimate Pontiff and Successor of Peter, however much he has been Canonically elected and accepted by the Church. The instances brought forward in no way serve the Adversaries.
XLI. Respond. 1. <i>ad primam instantiam de Formoso & Stephano</i>. Erravit quidem Stephanus, sed in quæstione facti, non juris, & malo exemplo, non falsâ doctrinâ. Ita Bellarminus Tom. 1. Lib. 4. de Pontif. cap. 12. & communiter alii Catholici Doctores. Historia ex Card. Baronio Tom. 10. Annal. Ecclesiast. A. C. 897. sic se habet. Stephanus VII. verus Papa Antecessoris sui Formosi etiam legitimi Pontificis cadaver ex gravi odio exhumavit, atque Pontificalibus indutum vestimentis in Sedem Romani Papatūs collocavit, sic illum Papam allocutus: <i>Cum esses Portuensis Episcopus, cur ambitionis Spiritu Romanam Universalem Sedem occupasti?</i> quibus dictis mox eundem sacratis exutum vestibus digitisque tribus abscissis, quibus benedicere consueverat, in Tyberim præcipitari jussit, cunctosque, quos ipse ordinaverat, gradu proprio dejectos iterum ordinavit. Deinde collectâ Synodo factum hoc suum ibi approbavit; quam postea approbationem Joannes IX. rescidit, ignique tradidit, ac penitus abolevit. In hac re nefanda non contigit error in fide, inquit rectè Baronius loc. cit. sed violenta Tyrannis in facto; quia Stephanus non voluit definire, Formosum non fuisse legitimum Pontificem, postquam fuit acceptatus ab Ecclesia, sed irâ æstuans voluit ipsum, quem gravi odio persecutus fuerat, hâc		XLI. Response 1, <i>to the first instance, concerning Formosus and Stephen</i>. Stephen erred indeed, but in a question of fact, not of law, and by bad example, not by false doctrine. So Bellarmine (Tom. 1, Book 4, On the Pontiff, ch. 12) and commonly the other Catholic Doctors. The History, from Cardinal Baronius (Tom. 10, Ecclesiastical Annals, A.D. 897), stands thus: Stephen VII, a true Pope, out of grave hatred exhumed the corpse of his Predecessor Formosus, likewise a legitimate Pontiff, and, having clothed it in the Pontifical vestments, placed it on the Seat of the Roman Papacy, addressing that Pope thus: <i>When you were Bishop of Porto, why did you, in a spirit of ambition, occupy the Roman Universal See?</i> — with which words he presently ordered the same, stripped of the sacred vestments and with the three fingers with which he had been accustomed to bless cut off, to be hurled into the Tiber; and all whom he had ordained he cast down from their proper rank and ordained anew. Then, having gathered a Synod, he had this deed of his approved there; which approbation John IX afterward rescinded, committed to the flames, and utterly abolished. In this abominable affair there occurred no error in faith, says Baronius rightly (loc. cit.), but violent Tyranny in deed; because Stephen did not wish to define that Formosus had not been a legitimate Pontiff after he had been accepted by the Church, but, seething with anger, wished by this means to dishonor and defame the man whom he had pursued with grave hatred, and to have approvers of his

<i>Latin</i>		<i>English</i>
ratione inhonorare, infamare, ac sceleris sui quasi justi facti habere approbatores. Cæterùm Formosum, cum à Piscatoribus inventus, & in Ecclesiam D. Petri deportatus esset, à Sacris Imaginibus in loculo suo positum venerabiliter salutatum fuisse, scribit Luitprandus Lib. 1. cap. 8. apud eundem Baronium; ex quo facilè conjici potest, quantæ Authoritatis, quantæ religionis ac Sanctitatis Pontifex fuerit Formosus.		crime as though of a just deed. For the rest, Liutprand writes (Book 1, ch. 8, in the same Baronius) that Formosus, when he had been found by Fishermen and carried back into the Church of St. Peter, was venerably saluted by the Sacred Images as he lay in his coffin; from which it may easily be conjectured of how great Authority, of how great religion and Sanctity a Pontiff Formosus was.
XLII. Respond. 2. <i>ad secundam instantiam de schismate</i>. Quando statim & manifestè constat de valore electionis per acceptionem communem, quantumvis postea reclamant aliqui, illam semel factam & acceptatam revocare omnes etiam Electores simul non possunt. Atque ita accidit Electio Urbani VI. cujus juridicam electionem nec numerus illorum Cardinalium nim. 12. Gallorum justo minor: nec tarda nimis eorundem reclamatio invalidare potuit; qui proindè verus absque ullo dubio fuit Pontifex (quem idcirco S. Catharina Senensis magnopere propugnavit) omnesque ejus Successores semper habiti fuerunt ut omnino legitimi à majore & saniore Ecclesiæ parte usque ad tempora Gregorii XII. Benedicti XIII. & Joannis XXIII. qui omnes tres se dicebant Papas, suosque singuli habebant adhærentes; unde tunc apud prudentes etiam judicioque sanos aliqua fuit enata dubitatio, maximè inter Gregorium XII. & Joannem XXIII. (Benedicto enim nullum probabile jus patrocinebatur) quis illorum alteri præstaret, ambo enim diversis vicibus à majore Cardinalium parte electi fuerunt schismatis tollendi causâ; unde uterque in Papatum prætereundere jus posse videbantur.		XLII. Response 2, <i>to the second instance, concerning the schism</i>. When at once and manifestly the validity of an election is established through common acceptance, however much some may afterwards protest, not even all the Electors together can revoke it, once made and accepted. And so it happened with the Election of Urban VI, whose juridical election neither the number of those Cardinals — namely twelve, Frenchmen, short of the lawful number — nor their too-tardy protest could invalidate; who accordingly was without any doubt the true Pontiff (whom for that reason St. Catherine of Siena greatly championed), and all his Successors were always held as altogether legitimate by the greater and sounder part of the Church down to the times of Gregory XII, Benedict XIII, and John XXIII, all three of whom called themselves Popes, and each had his own adherents; whence at that time, even among prudent men and men of sound judgment, some doubt arose — chiefly between Gregory XII and John XXIII (for no probable right pleaded for Benedict) — as to which of them was to be preferred to the other; for both had been elected, at different turns, by the greater part of the Cardinals for the sake of removing the schism; whence each seemed able to claim a right to the Papacy.
XLIII. In hoc casu & tristissimo Ecclesiæ statu sentiendum, non fuisse de fide, quis illorum verus ac legitimus esset Papa. Ita post alios expressè Arriaga Tom. 5. D. 7. sect. 8. num. 54. Nam ut electio Papæ de fide sit, & talis habeatur, non sufficit, eam proponi &		XLIII. In this case and most sorrowful state of the Church it must be judged that it was not of faith which of them was the true and legitimate Pope. So, after others, expressly Arriaga (Tom. 5, Disp. 7, sect. 8, num. 54). For in order that the election of a Pope be of faith, and be held as such, it does not suffice that it be proposed and

<i>Latin</i>		<i>English</i>
acceptari ab Ecclesia quomodocunque, sed debet proponi & acceptari absque contradictione probabili, hoc est, notabili virorum prudentum, ac fundamentis apparentibus nixâ; alioquin licitum est, cuilibet suspendere assensum, usque dum meliùs constet, quis verum jus ad Papatum habeat; quod si pauci solùm electioni se opponant, qui malè contenti esse possunt, electionem non infringunt, nec hujus certitudinem tollunt. Atqui tempore Gregorii XII. & Joannis XXIII. talis probabilis contradictio extitit, cum ex utriusque parte starent multi viri prudentes apparentibus fundamentis nixi, & Res Christiana distraheretur, ut Historici testantur. Ergo neutrius fuit tunc de fide, nec ut talis est habita. Confirmatur. Ex communi omnium Doctorum sententia. Dubius Papa reverâ in facie Ecclesiæ non est verus Papa, utpote cui Ecclesia obedire non tenetur, sed jure ad novam electionem procedi potest. Cum ergo prædicti Pontifices fuerint dubii Pontifices, atque idcirco Ecclesia in Concilio Constantiensi ad novam electionem processerit, ut apud omnes constat, non potuit esse de fide, vel Gregorium, vel Joannem esse tunc verum Papam. Ex quo tamen non infertur, perinde tunc fuisse, ac si omnes Papæ non-vero adhæsissent. Nam licet multi adhæserint ei, qui reverâ non fuit Papa, non tamen tota Ecclesia fuit decepta, sed solummodo pars; illi etiam, qui invincibiliter falluntur, sublato dein Schismate vero Pontifici uniti confirmationem earum gratiarum, quæ ab apparente acceperant, de novo petunt & accipient, ac proinde periculum irreparabilis damni & falsorum dogmatum hoc ipso cessat. Hinc Martinus V. in Concilio Constantiensi legitimè tandem ac sine contradictione electus, sopito prorsus schismate ex iis, quæ sub Schismate facta fuère, quædam revalidavit, quædam invalidavit, prout ad bonum Ecclesiæ & tollendam in ea omnem dubitandi rationem expedire videbatur.		accepted by the Church in any way whatsoever; but it must be proposed and accepted without probable contradiction — that is, notable contradiction of prudent men, and resting on apparent foundations; otherwise it is lawful for anyone to suspend assent until it be better established who has the true right to the Papacy. But if only a few oppose the election, who may be mere malcontents, they do not break the election, nor take away its certitude. Now in the time of Gregory XII and John XXIII such probable contradiction existed, since on either side stood many prudent men resting on apparent foundations, and Christendom was torn asunder, as the Historians testify. Therefore it was then of faith for neither, nor was it held as such. It is confirmed from the common opinion of all the Doctors: a doubtful Pope, in the face of the Church, is really not a true Pope, inasmuch as the Church is not bound to obey him, but may by right proceed to a new election. Since therefore the aforesaid Pontiffs were doubtful Pontiffs, and the Church for that reason proceeded to a new election in the Council of Constance, as is evident to all, it could not be of faith that either Gregory or John was then the true Pope. From this, however, it is not inferred that it was then just as if all had adhered to a non-true Pope. For although many adhered to him who really was not Pope, nevertheless the whole Church was not deceived, but only a part; those also who are invincibly deceived, the Schism being afterwards removed and they being united to the true Pontiff, seek anew and will receive the confirmation of those graces which they had received from the apparent one; and thus the danger of irreparable harm and of false dogmas by this very fact ceases. Hence Martin V, at length legitimately and without contradiction elected in the Council of Constance, the schism being entirely laid to rest, of the things done under the Schism revalidated some and invalidated others, as seemed expedient for the good of the Church and for removing from her every ground of doubting.

<i>Latin</i>		<i>English</i>
XLIV. Respond. 3. argumentum Gerhardi retorsum, quàm responsum mereri. Nam 1. falsum est, eum non esse in Ecclesia, de quo rationabiliter dubitari potest, num sit in Ecclesia; quia solius Fidei defectus, non aliorum dubitatio excludit ex Ecclesia. 2. falsum est, de quolibet ita rationabiliter dubitari posse, an sit in Ecclesia; quia hæc est mera hæreticorum Calumnia. 3. falsum est, illum non esse legitimum Papam, de quo rationabiliter dubitari potest, an sit in Ecclesia; quia aliorum sola dubitatio non exuit Papam ex possessione legitimi sui Pontificatus. 4. falsum est, ullum Papam reipsâ fuisse hæreticum; quia hoc non probatur, sed merè ponitur à Sectariis. 5. falsum est, cap. cum aliquis cit. dicere, eum non esse in Ecclesia, aut de illo certò (moraliter) sciri non posse, quod sit in Ecclesia, de cujus interiore sanctitate non constat; quia moralis certitudo de aliquo haberi potest, quod habeat fidem, non autem, quod habeat gratiam. 6. falsum est, Papam hæreticum (dando, non concedendo hunc casum) non posse esse Caput Ecclesiæ; quia ut aliquis sit præcisè Caput (metaphoricè sumptum) Ecclesiæ, non necessariò requiritur Fides, ut patet in Christo, qui fuit Caput Ecclesiæ, & tamen non habuit fidem. Ecce unicum argumentum hæretici Magistri tot scatens falsitatibus!		XLIV. Response 3: Gerhard's argument deserves to be retorted rather than answered. For, 1, it is false that he is not in the Church, of whom it can reasonably be doubted whether he is in the Church; because it is the defect of Faith alone, not the doubting of others, that excludes from the Church. 2. It is false that of anyone whatever it can thus reasonably be doubted whether he is in the Church; for this is mere Calumny of the heretics. 3. It is false that he is not the legitimate Pope, of whom it can reasonably be doubted whether he is in the Church; because the mere doubt of others does not strip the Pope from the possession of his legitimate Pontificate. 4. It is false that any Pope has in fact been a heretic; for this is not proved, but merely posited by the Sectarrians. 5. It is false that the cited chapter <i>cum aliquis</i> says that a man is not in the Church, or that it cannot be known with (moral) certainty that he is in the Church, of whose interior sanctity there is no assurance; for moral certitude can be had about someone that he has faith, though not that he has grace. 6. It is false that a heretical Pope (granting, not conceding, this case) cannot be the Head of the Church; because, for someone to be precisely the Head (metaphorically taken) of the Church, Faith is not necessarily required, as is evident in Christ, who was the Head of the Church and yet did not have faith. Behold the single argument of the heretical Master, teeming with so many falsities!
XLV. Ut igitur toti huic sanè difficili materiæ de successoribus D. Petri finem imponamus, concludimus hoc argumento. Quicumque propter gregem unum visibilem perpetuò conservandum ac gubernandum sapienter instituit unum Pastorem visibilem, etiam instituit Pastorem perpetuum. Atqui Christus Matth. 16. Luc. 12. Joan. 21. propter Ovine suum visibile usque ad consummationem sæculi conservandum ac gubernandum instituit Pastorem unum visibilem ordinarium. Ergo instituit iisdem verbis Christus Pastorem perpetuum. Sed non est perpetuus in persona Petri. Ergo in ejus Successoribus. Ergo, cum heterodoxi nullum alium omnibus retro annis		XLV. That we may at last put an end to this truly difficult matter of the successors of St. Peter, we conclude with this argument. Whoever, for the sake of one visible flock to be perpetually preserved and governed, wisely institutes one visible Shepherd, also institutes a perpetual Shepherd. But Christ (Matth. 16; Luke 12; John 21), for the sake of His visible Sheepfold to be preserved and governed until the consummation of the age, instituted one ordinary visible Shepherd. Therefore in the same words Christ instituted a perpetual Shepherd. But he is not perpetual in the person of Peter. Therefore in his Successors. Therefore, since the heterodox have not been able, for all the years past, to point to any other than the Roman Pontiff at any given time, they are forced to confess that Christ, just as He has

<i>Latin</i>		<i>English</i>
potuerint ostendere, quàm Romanum Pontificem suo quovis tempore, iidem fateri coguntur, quod Christus sicuti universæ Ecclesiæ suæ hunc Innocentium XI. pro hoc præsentī: ita ex cæteris omnibus pro suo etiam quemlibet alio tempore Pontificem summum constituerit. Hoc, inquam, argumento concludimus, & omnia, quæ hactenus dicta fuere, confirmamus, quæ inconcussa stabant, donec Adversarii fundamentum istud evertant, id quod nullo unquam tempore fiet. Simili modo concludendi utitur S. Justinus Martyr, quem allegant, & sequuntur DD. à Wallenburch Tom. 2. fol. 7.		constituted for His universal Church this Innocent XI for the present time, so out of all the rest has also constituted, for his own time, whoever held the office at any other time as supreme Pontiff. With this argument, I say, we conclude, and we confirm everything that has been said thus far — which would stand unshaken until the Adversaries overturn this foundation, which will never at any time come to pass. A similar mode of concluding is used by St. Justin Martyr, whom the DD. à Wallenburch allege and follow, Tom. 2, fol. 7.